The Codex — Law Division
DOCUMENTATION SET BRIEFING

Document Templates

Technical Manual

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DOCUMENTATION SET BRIEFING

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`briefkit > examples > legal-templates > docs > document-templates`

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Table of Contents

Scope

Procedures

1. Contract Templates
2. Litigation Templates
3. Corporate Templates
4. Property Templates
5. Estate Planning Templates
6. Regulatory Compliance Templates
7. Correspondence Templates

Reference Tables

Bibliography

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Scope

Tier 1 — Foundations	Complete	Template structure, variable conventions, adaptation methodology		Tier 2 — Technical	Complete	Jurisdiction-specific templates with clause-by-clause annotation		Tier 3 — Spectral Depth	Complete	Multi-jurisdiction comparison, pitfall analysis, regulatory cross-mapping
No data available										

Applicability

#	Subsystem	Coverage
1	Contract Templates	See Procedures section
2	Litigation Templates	See Procedures section
3	Corporate Templates	See Procedures section
4	Property Templates	See Procedures section
5	Estate Planning Templates	See Procedures section
6	Regulatory Compliance Templates	See Procedures section
7	Correspondence Templates	See Procedures section

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Procedures

1. Contract Templates

The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-01 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, CA, NZ

Paper section references: `accc-guide-competition-consumer-law.pdf`, `accc-compliance-enforcement-policy-2025-26.pdf`

Overview

This document provides four foundational contract templates used across commercial and personal legal practice: the non-disclosure agreement, the services agreement, the employment contract, and the residential lease. Each template includes the complete text with bracketed variables, clause-by-clause annotation, jurisdiction-specific variation notes, and common pitfalls.

All templates assume arm's-length transactions between parties of roughly equal bargaining power. Where consumer protection legislation imposes additional requirements (such as unfair contract terms provisions under the Australian Consumer Law or the Consumer Rights Act 2015 (UK)), those requirements are noted but may necessitate further adaptation.

Template 1: Non-Disclosure Agreement (Mutual)

Purpose

A non-disclosure agreement (NDA), also called a confidentiality agreement or confidential disclosure agreement (CDA), creates legally binding obligations to protect confidential information shared between parties. It is typically used before business negotiations, potential partnerships, due diligence processes, or any engagement where proprietary information will be exchanged.

When to Use

Step 1: Pre-transaction due diligence (mergers, acquisitions, joint ventures)

Step 2: Discussions with potential suppliers, contractors, or business partners

Step 3: Sharing trade secrets, business plans, financial data, or technical information

Step 4: Employee access to sensitive business information (though employment contracts often include confidentiality clauses)

Template Text

MUTUAL NON-DISCLOSURE AGREEMENT

Date: [DATE OF AGREEMENT]

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Parties:

Step 5: [PARTY A FULL LEGAL NAME] ([ACN/ABN/COMPANY NUMBER]) of [PARTY A REGISTERED ADDRESS] (**“Party A”**)

Step 6: [PARTY B FULL LEGAL NAME] ([ACN/ABN/COMPANY NUMBER]) of [PARTY B REGISTERED ADDRESS] (**“Party B”**)

(each a **“Party”** and together the **“Parties”**)

Background

A. The Parties are considering [BRIEF DESCRIPTION OF PURPOSE, e.g., “a potential commercial transaction involving the supply of technology services”] (the **“Purpose”**).

B. In connection with the Purpose, each Party may disclose Confidential Information to the other Party.

C. The Parties wish to protect the confidentiality of such information on the terms set out in this Agreement.

Agreed Terms

1. Definitions and Interpretation

1.1 In this Agreement:

“Confidential Information” means all information disclosed by a Party (the **“Disclosing Party”**) to the other Party (the **“Receiving Party”**) in connection with the Purpose, whether disclosed orally, in writing, electronically, or by any other means, and whether or not marked as confidential, including:

(a) trade secrets, know-how, inventions, processes, techniques, and algorithms;

(b) business plans, financial information, customer lists, supplier information, and pricing;

(c) technical data, designs, specifications, and software;

(d) any copies, summaries, notes, or analyses derived from the above; and

(e) the existence and terms of this Agreement and the fact that discussions regarding the Purpose are taking place,

but excludes information that:

(f) is or becomes publicly available other than through breach of this Agreement;

(g) was lawfully in the Receiving Party’s possession before disclosure, as evidenced by written records;

(h) is independently developed by the Receiving Party without reference to the Confidential Information; or

(i) is disclosed to the Receiving Party by a third party who is not bound by any obligation of confidentiality in respect of that information.

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“Permitted Purpose” means [SPECIFIC PERMITTED USE, e.g., “evaluating and negotiating the potential transaction described in the Background”].

“Representatives” means, in relation to a Party, its directors, officers, employees, agents, advisors (including legal, financial, and technical advisors), and contractors who need access to the Confidential Information for the Permitted Purpose.

1.2 A reference to a statute includes any amendment, re-enactment, or replacement of that statute and any subordinate legislation made under it.

2. Confidentiality Obligations

2.1 The Receiving Party must:

(a) keep the Confidential Information strictly confidential;

(b) not disclose the Confidential Information to any person except its Representatives, and only to the extent necessary for the Permitted Purpose;

(c) use the Confidential Information solely for the Permitted Purpose;

(d) take all reasonable steps to protect the Confidential Information from unauthorized disclosure, including measures at least as protective as those the Receiving Party uses for its own confidential information of similar sensitivity; and

(e) ensure that each Representative to whom Confidential Information is disclosed is made aware of and complies with the obligations in this Agreement.

2.2 The Receiving Party is responsible for any breach of this Agreement by its Representatives.

3. Compelled Disclosure

3.1 If the Receiving Party is compelled by law, regulation, or valid court order to disclose Confidential Information, the Receiving Party must:

(a) to the extent legally permitted, promptly notify the Disclosing Party before making such disclosure;

(b) cooperate with the Disclosing Party (at the Disclosing Party’s cost) in any attempt to limit or prevent the disclosure; and

(c) disclose only the minimum amount of Confidential Information required by law.

4. Return and Destruction

4.1 Upon the earlier of: (a) the Disclosing Party’s written request; or (b) the termination of this Agreement, the Receiving Party must promptly:

(a) return to the Disclosing Party all documents and materials containing Confidential Information; or

(b) destroy all such documents and materials (including electronic copies),

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and certify in writing that it has done so. The Receiving Party may retain copies required by law or regulation, or stored on automatic backup systems in the ordinary course of business, provided that such retained copies remain subject to the confidentiality obligations in this Agreement.

5. No Grant of Rights

5.1 Nothing in this Agreement grants the Receiving Party any right, title, or interest in the Confidential Information or any intellectual property rights of the Disclosing Party.

5.2 Neither Party is obliged to disclose any information or to enter into any further agreement.

6. Remedies

6.1 The Parties acknowledge that a breach of this Agreement may cause irreparable harm for which damages may not be an adequate remedy. Accordingly, the Disclosing Party is entitled to seek injunctive or other equitable relief in addition to any other remedies available at law.

7. Term and Survival

7.1 This Agreement commences on the date first written above and continues for [TERM, e.g., “two (2) years”] unless terminated earlier by either Party giving [NOTICE PERIOD, e.g., “thirty (30) days”] written notice.

7.2 The confidentiality obligations in clause 2 survive termination of this Agreement for a period of [SURVIVAL PERIOD, e.g., “five (5) years”] from the date of termination, or indefinitely in respect of trade secrets.

8. General

8.1 **Governing Law.** This Agreement is governed by the laws of [GOVERNING JURISDICTION, e.g., “New South Wales, Australia”] and the Parties submit to the non-exclusive jurisdiction of the courts of that jurisdiction.

8.2 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior agreements, understandings, and representations.

8.3 **Amendment.** This Agreement may only be amended in writing signed by both Parties.

8.4 **Waiver.** A waiver of any provision of this Agreement must be in writing and does not constitute a waiver of any other provision.

8.5 **Severability.** If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions continue in full force and effect.

8.6 **Counterparts.** This Agreement may be executed in any number of counterparts, each of which is an original and all of which together constitute one agreement.

Executed as an agreement.

[PARTY A FULL LEGAL NAME]

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Signature: _____ Name: [SIGNATORY NAME] Title: [SIGNATORY TITLE] Date: [DATE]

[PARTY B FULL LEGAL NAME]

Signature: _____ Name: [SIGNATORY NAME] Title: [SIGNATORY TITLE] Date: [DATE]

Key Clauses Explained

Clause	Purpose	Risk if Omitted
Definition of Confidential Information	Defines scope of protection	Disputes about what is covered
Exclusions (1.1(f)-(i))	Prevents overreach; ensures enforceability	May be found unconscionable or unenforceable
Compelled Disclosure (3)	Protects party from criminal liability for obeying court orders	Party faces impossible choice between breach of agreement and contempt of court
Return/Destruction (4)	Limits ongoing exposure after relationship ends	Information remains accessible indefinitely
Remedies (6)	Establishes entitlement to injunctive relief	Must prove entitlement to injunction from scratch
Survival (7.2)	Extends protection beyond agreement term	Protection ceases when agreement terminates

Jurisdiction Variations

Issue	AU	US	UK	CA	NZ
Consideration required	No (if deed)	Yes (mutual disclosure usually sufficient)	No (if deed)	Yes	No (if deed)
Non-compete in NDA	Enforceable if reasonable	Varies by state; void in CA (Bus & Prof Code s 16600)	Enforceable if reasonable	Enforceable if reasonable	Enforceable if reasonable
Injunctive relief	Equitable discretion	Available; some states require bond	Equitable discretion	Equitable discretion	Equitable discretion
Electronic execution	Valid under ETA 1999	Valid under E-SIGN Act / UETA	Valid under ECA 2000	Valid under provincial e-commerce acts	Valid under ETA 2002

Common Pitfalls

Step 7: **Overbroad definition of confidential information.** Defining “all information shared” as confidential, without meaningful exclusions, may render the agreement unenforceable as an unreasonable restraint of trade.

Step 8: **No end date on confidentiality.** Perpetual confidentiality obligations are difficult to enforce for non-trade-secret information. Define a reasonable survival period.

Step 9: **One-way NDA for mutual disclosure.** If both parties will share information, use a mutual NDA. A one-way agreement leaves the disclosing party unprotected.

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Step 10: **Failure to address compelled disclosure.** Without clause 3, a party served with a subpoena faces an impossible conflict between compliance with the NDA and compliance with the law.

Step 11: **No carve-out for automatic backups.** Modern IT systems create automatic backups. Without the carve-out in clause 4.1, the return/destroy obligation may be practically impossible to comply with.

Template 2: Services Agreement

Purpose

A services agreement governs the engagement of one party to provide services to another. It addresses the scope of services, payment terms, intellectual property ownership, liability allocation, and termination rights. It applies to independent contractor engagements, consultancy arrangements, and outsourced service delivery.

When to Use

Step 12: Engaging consultants, contractors, or freelancers

Step 13: Outsourcing business functions (IT, marketing, accounting, HR)

Step 14: Software development or implementation projects

Step 15: Professional advisory engagements (where not governed by profession-specific retainer agreements)

Template Text

SERVICES AGREEMENT

Date: [DATE OF AGREEMENT]

Parties:

Step 16: [CLIENT FULL LEGAL NAME] ([ACN/ABN/COMPANY NUMBER]) of [CLIENT REGISTERED ADDRESS] (**"Client"**)

Step 17: [PROVIDER FULL LEGAL NAME] ([ACN/ABN/COMPANY NUMBER]) of [PROVIDER REGISTERED ADDRESS] (**"Provider"**)

Background

A. The Client wishes to engage the Provider to perform the Services described in this Agreement.

B. The Provider has represented that it has the necessary skills, qualifications, and resources to perform the Services.

Agreed Terms

1. Services

1.1 The Provider must perform the services described in **Schedule 1** (the **"Services"**) in accordance with this Agreement.

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1.2 The Provider must perform the Services: (a) with due care, skill, and diligence; (b) in accordance with all applicable laws, regulations, and industry standards; (c) in a timely manner consistent with the milestones set out in Schedule 1; and (d) using personnel with the qualifications and experience specified in Schedule 1.

1.3 The Provider must comply with all reasonable directions of the Client in relation to the performance of the Services, provided such directions do not fundamentally alter the scope of the Services.

2. Fees and Payment

2.1 The Client must pay the Provider the fees set out in **Schedule 2** (the **"Fees"**) in accordance with this clause 2.

2.2 The Provider must submit invoices [INVOICING FREQUENCY, e.g., "monthly in arrears"] in a form reasonably acceptable to the Client, including sufficient detail of the Services performed.

2.3 The Client must pay each correctly rendered invoice within [PAYMENT TERMS, e.g., "thirty (30) days"] of receipt.

2.4 All Fees are exclusive of [GST/VAT/SALES TAX] unless otherwise stated. If [GST/VAT/SALES TAX] is payable on a supply made under this Agreement, the Client must pay the [GST/VAT/SALES TAX] amount in addition to the Fees.

2.5 The Client may dispute an invoice in good faith by notifying the Provider within [DISPUTE PERIOD, e.g., "fourteen (14) days"] of receipt. The undisputed portion of the invoice remains payable in accordance with clause 2.3.

3. Intellectual Property

3.1 **Pre-existing IP.** Each Party retains ownership of its intellectual property that existed before this Agreement or that is developed independently of this Agreement (**"Pre-existing IP"**).

3.2 **Project IP.** All intellectual property created by the Provider in the course of performing the Services (**"Project IP"**) [SELECT ONE]:

[OPTION A — Assignment to Client] vests in and is assigned to the Client upon creation. The Provider must do all things necessary to give effect to this assignment, including executing any documents reasonably required by the Client. The Provider irrevocably and unconditionally consents to any act or omission that would otherwise infringe any moral rights the Provider may have in the Project IP.

[OPTION B — License to Client] remains the property of the Provider. The Provider grants the Client a perpetual, irrevocable, non-exclusive, royalty-free, worldwide license to use, reproduce, modify, and sublicense the Project IP for the Client's business purposes.

3.3 **License of Pre-existing IP.** To the extent that the Services or Project IP incorporate the Provider's Pre-existing IP, the Provider grants the Client a perpetual, irrevocable, non-exclusive, royalty-free license to use such Pre-existing IP to the extent necessary to receive the full benefit of the Services and Project IP.

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4. Confidentiality

4.1 Each Party must keep confidential all information received from the other Party in connection with this Agreement and must not disclose or use such information except as permitted by this Agreement or with the other Party's prior written consent.

4.2 The obligations in clause 4.1 do not apply to information that is publicly available, independently developed, or required to be disclosed by law.

5. Warranties

5.1 The Provider warrants that: (a) it has the right, power, and authority to enter into this Agreement and perform the Services; (b) the Services will be performed with due care, skill, and diligence consistent with generally accepted industry standards; (c) the Services and any deliverables will not infringe the intellectual property rights of any third party; and (d) it holds all licenses, permits, and registrations required to perform the Services.

5.2 The Client warrants that it has the right, power, and authority to enter into this Agreement.

6. Indemnity

6.1 The Provider indemnifies the Client against all claims, losses, damages, costs, and expenses (including reasonable legal costs) arising from: (a) a breach of this Agreement by the Provider; (b) any negligent or wrongful act or omission of the Provider in performing the Services; or (c) any infringement of a third party's intellectual property rights arising from the Services or any deliverables.

6.2 The Client indemnifies the Provider against all claims, losses, damages, costs, and expenses (including reasonable legal costs) arising from: (a) a breach of this Agreement by the Client; or (b) the Client's use of the Services or deliverables in a manner not contemplated by this Agreement.

7. Limitation of Liability

7.1 To the maximum extent permitted by law, neither Party's total aggregate liability under or in connection with this Agreement (whether in contract, tort (including negligence), statute, or otherwise) exceeds [LIABILITY CAP, e.g., "the total Fees paid or payable under this Agreement in the twelve (12) months preceding the event giving rise to the claim"].

7.2 Neither Party is liable for any indirect, consequential, special, or incidental loss or damage, including loss of profit, loss of revenue, loss of data, or loss of business opportunity.

7.3 Nothing in this Agreement limits liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; (c) a breach of clause 4 (Confidentiality); (d) the Provider's indemnity obligations under clause 6.1(c) (IP infringement); or (e) any liability that cannot be limited or excluded by law.

8. Term and Termination

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8.1 This Agreement commences on [COMMENCEMENT DATE] and continues for [INITIAL TERM] unless terminated earlier in accordance with this clause 8.

8.2 Either Party may terminate this Agreement: (a) for convenience by giving [NOTICE PERIOD, e.g., “thirty (30) days”] written notice to the other Party; (b) immediately by written notice if the other Party commits a material breach that is not remedied within [CURE PERIOD, e.g., “fourteen (14) days”] of receiving notice of the breach; or (c) immediately by written notice if the other Party becomes insolvent, enters into administration, liquidation, or any arrangement with its creditors.

8.3 Upon termination, the Provider must deliver to the Client all completed and partially completed deliverables and all Client materials in the Provider’s possession.

8.4 Termination does not affect accrued rights or obligations, and clauses 3, 4, 6, 7, and this clause 8.4 survive termination.

9. General

9.1 **Independent Contractor.** The Provider is an independent contractor and not an employee, agent, or partner of the Client.

9.2 **Governing Law.** This Agreement is governed by the laws of [GOVERNING JURISDICTION].

9.3 **Dispute Resolution.** Any dispute arising under this Agreement must first be referred to mediation administered by [MEDIATION BODY, e.g., “the Australian Disputes Centre”]. If mediation does not resolve the dispute within [MEDIATION PERIOD, e.g., “thirty (30) days”], either Party may commence court proceedings.

9.4 **Entire Agreement.** This Agreement (including its Schedules) constitutes the entire agreement between the Parties and supersedes all prior agreements.

9.5 **Assignment.** Neither Party may assign its rights under this Agreement without the other Party’s prior written consent, except that the Client may assign this Agreement to a related body corporate or in connection with a merger or acquisition.

9.6 **Notices.** All notices must be in writing and sent to the addresses specified in this Agreement or as updated by written notice.

Schedule 1 — Services Description

[DETAILED DESCRIPTION OF SERVICES, MILESTONES, DELIVERABLES, KEY PERSONNEL]

Schedule 2 — Fees

[FEE STRUCTURE: FIXED PRICE / TIME AND MATERIALS / RETAINER] [PAYMENT SCHEDULE] [EXPENSE REIMBURSEMENT POLICY]

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Jurisdiction Variations

Issue	AU	US	UK	CA	NZ
Unfair contract terms	ACL applies to standard form small business contracts	UCC Art 2 (goods); common law (services)	CRA 2015 (consumer); UCTA 1977 (business)	Provincial consumer protection acts	FTA 1986 unfair contract terms
Contractor vs employee	Multi-factor test (*Personnel Contracting*)	IRS 20-factor test; ABC test (some states)	IR35 off-payroll rules	Common law test; provincial legislation	Employment Relations Act 2000 tests
IP assignment	Must be in writing (Copyright Act 1968 s 196)	Must be in writing (17 USC s 204)	Must be in writing (CDPA 1988 s 90)	Must be in writing (Copyright Act s 13)	Must be in writing (Copyright Act 1994 s 114)
GST/VAT/Tax	10% GST	No federal sales tax; state varies	20% VAT	5% GST + provincial	15% GST

Template 3: Employment Contract

Purpose

An employment contract establishes the terms and conditions of employment between an employer and an employee. Unlike independent contractor agreements, employment contracts must comply with statutory minimum entitlements that cannot be contracted out of, including minimum wages, leave entitlements, unfair dismissal protections, and workplace health and safety obligations.

Template Text

EMPLOYMENT CONTRACT

Date: [DATE]

Parties:

Step 18: [EMPLOYER FULL LEGAL NAME] ([ACN/ABN/COMPANY NUMBER]) of [EMPLOYER ADDRESS] (**“Employer”**)

Step 19: [EMPLOYEE FULL NAME] of [EMPLOYEE ADDRESS] (**“Employee”**)

1. Position and Duties

1.1 The Employer employs the Employee in the position of [POSITION TITLE], reporting to [REPORTING MANAGER TITLE].

1.2 The Employee’s principal duties are set out in **Schedule 1**. The Employer may vary these duties from time to time, provided the varied duties are consistent with the Employee’s skills, qualifications, and position.

1.3 The Employee must perform their duties faithfully, diligently, and to the best of their ability.

1.4 The Employee’s principal place of work is [WORKPLACE ADDRESS]. [OPTIONAL: The Employer may require the Employee to work at other locations on reasonable notice.]

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2. Term and Probation

2.1 Employment commences on [START DATE] and continues until terminated in accordance with this contract.

2.2 The first [PROBATION PERIOD, e.g., “six (6) months”] of employment is a probationary period. During the probationary period, either party may terminate employment by giving [PROBATION NOTICE, e.g., “one (1) week”] written notice.

3. Remuneration

3.1 The Employee’s annual salary is [SALARY AMOUNT] (gross, before tax), payable [PAYMENT FREQUENCY, e.g., “fortnightly”] in arrears by electronic funds transfer.

3.2 [AU OPTION: The salary includes an amount equivalent to the minimum superannuation guarantee contribution required by the Superannuation Guarantee (Administration) Act 1992 (Cth). / The Employer will pay superannuation contributions in addition to the salary in accordance with applicable legislation.]

3.3 The Employer will review the Employee’s salary annually but is not obliged to increase it.

4. Hours of Work

4.1 The Employee’s ordinary hours of work are [HOURS, e.g., “38 hours per week, Monday to Friday”].

4.2 The Employee may be required to work reasonable additional hours to meet the requirements of the position. [AU: Refer to s 62 of the Fair Work Act 2009 regarding the right to refuse unreasonable additional hours.]

5. Leave Entitlements

5.1 The Employee is entitled to leave in accordance with applicable legislation, including: (a) [AU: annual leave (4 weeks per year), personal/carer’s leave (10 days per year), compassionate leave, parental leave, and long service leave as provided by the Fair Work Act 2009 and applicable state legislation] [US: paid time off of [PTO DAYS] days per year, in accordance with the Employer’s PTO policy] [UK: annual leave (5.6 weeks per year, including bank holidays, per the Working Time Regulations 1998)]

6. Confidentiality

6.1 During and after employment, the Employee must not disclose or use the Employer’s Confidential Information except as required in the proper performance of their duties.

6.2 **“Confidential Information”** means all information relating to the Employer’s business, clients, finances, operations, technology, and strategies that is not publicly available.

7. Intellectual Property

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7.1 All intellectual property created by the Employee in the course of employment belongs to the Employer. [AU: Copyright Act 1968 s 35(6); US: work-for-hire doctrine 17 USC s 101; UK: CDPA 1988 s 11(2).]

7.2 The Employee must promptly disclose all inventions, works, and designs created in connection with employment and must execute all documents necessary to vest title in the Employer.

8. Post-Employment Restraints

8.1 For a period of [RESTRAINT PERIOD, e.g., “six (6) months”] after the termination of employment, the Employee must not, within [GEOGRAPHIC AREA, e.g., “a 50 kilometer radius of the Employer’s principal office”]: (a) engage in or be concerned with any business that competes with the Employer’s business; (b) solicit or entice away any client or customer of the Employer; or (c) solicit or recruit any employee of the Employer.

8.2 Each restraint in clause 8.1 is a separate and independent restraint. If any restraint is found to be unenforceable, it may be severed without affecting the validity of the remaining restraints.

8.3 [NOTE: Post-employment restraints are unenforceable in California per Bus & Prof Code s 16600. In other jurisdictions, enforceability depends on reasonableness of scope, duration, and geography.]

9. Termination

9.1 After the probationary period, either party may terminate employment by giving [NOTICE PERIOD, e.g., “four (4) weeks”] written notice, or, in the case of the Employer, payment in lieu of notice.

9.2 The Employer may terminate employment immediately without notice for serious misconduct, including fraud, dishonesty, serious breach of duty, or conduct that causes serious and imminent risk to health and safety.

9.3 Upon termination, the Employee must return all property of the Employer and delete all copies of Confidential Information.

10. Governing Law

10.1 This contract is governed by the laws of [GOVERNING JURISDICTION].

Schedule 1 — Position Description

[DETAILED DUTIES AND RESPONSIBILITIES]

Common Pitfalls

Step 20: **Attempting to contract below statutory minimums.** Employment legislation sets floors that cannot be reduced by agreement. In Australia, the Fair Work Act 2009 and applicable Modern Awards set minimum wages, leave, and conditions. In the UK, the Employment Rights Act 1996 and Working Time Regulations 1998 set equivalent minimums.

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Step 21: **Misclassifying employees as contractors.** The legal consequences of misclassification include back-payment of entitlements, tax penalties, and potential personal liability for directors. See *Personnel Contracting* [2022] HCA 1 (AU); *Dynamex Operations West v Superior Court* 4 Cal.5th 903 (2018) (US).

Step 22: **Unreasonable restraints of trade.** Restraints must be no broader than reasonably necessary to protect legitimate business interests. A restraint that prevents an employee from working in any capacity for any competitor anywhere for two years will almost certainly be struck down.

Template 4: Residential Lease

Purpose

A residential lease (tenancy agreement) grants a tenant the right to occupy residential premises for a defined period in exchange for rent. Residential tenancies are heavily regulated by statute in all covered jurisdictions.

Template Text

RESIDENTIAL TENANCY AGREEMENT

Date: [DATE]

Parties:

Step 23: [LANDLORD FULL LEGAL NAME] of [LANDLORD ADDRESS] (**“Landlord”**)

Step 24: [TENANT FULL LEGAL NAME] of [TENANT CURRENT ADDRESS] (**“Tenant”**)

1. Premises

1.1 The Landlord grants the Tenant a tenancy of the premises at [PROPERTY ADDRESS] (the **“Premises”**), together with [INCLUDED ITEMS, e.g., “the fixtures, fittings, and chattels listed in the Condition Report”].

2. Term

2.1 The tenancy commences on [START DATE] and expires on [END DATE] (the **“Fixed Term”**), unless terminated earlier in accordance with this Agreement and applicable legislation.

2.2 At the expiry of the Fixed Term, the tenancy continues as a periodic tenancy [AU: on a month-to-month basis; UK: as a statutory periodic tenancy under s 5 Housing Act 1988] unless the parties enter into a new fixed-term agreement.

3. Rent

3.1 The Tenant must pay rent of [RENT AMOUNT] per [WEEK/FORTNIGHT/MONTH], payable in advance on [PAYMENT DAY] by [PAYMENT METHOD].

3.2 [AU: The Landlord must not increase rent during a fixed term of less than 2 years (Residential Tenancies Act 2010 (NSW) s 41). For periodic tenancies, at least 60 days’ notice is required.]

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3.3 [UK: The Landlord may increase rent with at least one month’s notice using the section 13 Housing Act 1988 procedure, or as provided in any rent review clause.]

4. Security Deposit (Bond)

4.1 The Tenant must pay a security deposit of [BOND AMOUNT] before or on the commencement date.

4.2 [AU: The Landlord must lodge the bond with the relevant state bond authority (e.g., NSW Fair Trading, RTBA Victoria) within the time required by law.]

4.3 [UK: The Landlord must protect the deposit in a government-approved tenancy deposit scheme within 30 days of receipt (Housing Act 2004 ss 212-215).]

4.4 [US: The Landlord must hold the deposit in accordance with applicable state law, including any requirement for a separate trust account and interest payment.]

5. Tenant’s Obligations

5.1 The Tenant must: (a) pay rent on time; (b) keep the Premises in a reasonable state of cleanliness and repair (fair wear and tear excepted); (c) not make alterations or additions without the Landlord’s prior written consent; (d) not use the Premises for any illegal purpose; (e) not cause or permit a nuisance; (f) comply with all applicable strata or body corporate by-laws; and (g) allow the Landlord access to the Premises for inspections and repairs with the notice required by applicable legislation.

6. Landlord’s Obligations

6.1 The Landlord must: (a) provide and maintain the Premises in a reasonable state of repair, having regard to the age and condition of the Premises at the commencement of the tenancy; (b) comply with all applicable building, health, and safety laws; (c) ensure the Premises are fit for habitation; (d) not interfere with the Tenant’s quiet enjoyment of the Premises; and (e) pay all rates, taxes, and charges applicable to the Premises (except those the Tenant has agreed to pay).

7. Termination

7.1 Termination of this Agreement must comply with applicable residential tenancy legislation, including the minimum notice periods prescribed by law.

7.2 [AU: Refer to the applicable state Residential Tenancies Act for notice periods. NSW: 30 days for end of fixed term (s 84); 90 days no-grounds for periodic (to be amended under reforms).]

7.3 [UK: The Landlord must comply with the section 21 (no-fault) or section 8 (fault-based) procedures under the Housing Act 1988, noting pending Renters’ Reform Bill changes.]

7.4 [US: Notice periods and permissible grounds for termination vary by state. Consult applicable landlord-tenant statute.]

8. Condition Report

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8.1 Before or at the commencement of the tenancy, the parties must complete a condition report recording the condition of the Premises and all inclusions. [AU: This is mandatory under residential tenancy legislation in all states.]

9. Governing Law

9.1 This Agreement is governed by [APPLICABLE RESIDENTIAL TENANCY LEGISLATION AND GOVERNING JURISDICTION].

Jurisdiction-Specific Requirements

Requirement	AU (NSW)	US (CA)	UK	CA (ON)	NZ
Maximum bond	4 weeks rent	2 months (unfurnished); 3 months (furnished)	5 weeks rent (Tenant Fees Act 2019)	Last month's rent	4 weeks rent
Bond lodgment	Mandatory with state authority	Varies by state	Mandatory deposit scheme	Mandatory interest payment	Mandatory with Tenancy Services
Rent increase notice	60 days	30/90 days depending on increase	1 month (s 13 HA 1988)	90 days	60 days
Break lease penalties	Regulated by statute	Early termination fee if in lease	Fixed term usually binding	Varies	Regulated by statute
Implied warranty of habitability	Statutory (RTA 2010 s 52)	Common law + Civil Code s 1941	Landlord and Tenant Act 1985 s 11	RTA 2006 s 20	Residential Tenancies Act 1986 s 45

Common Pitfalls

Step 25: **Attempting to contract out of residential tenancy legislation.** In most jurisdictions, the statutory protections for tenants cannot be excluded or modified by agreement. Clauses that purport to do so are void.

Step 26: **Failing to lodge the bond/deposit.** In Australia, failing to lodge the bond is an offense. In the UK, failing to protect the deposit prevents the landlord from serving a valid section 21 notice and exposes the landlord to a penalty of one to three times the deposit amount.

Step 27: **No condition report.** Without a condition report, the landlord may be unable to claim against the bond for damage at the end of the tenancy.

Step 28: **Prohibited fees.** The Tenant Fees Act 2019 (UK) prohibits most fees charged to tenants. Similar restrictions exist in other jurisdictions. Charging prohibited fees may void the clause or create liability.

Cross-References

Step 29: Contract law principles: jurisdictions/ — offer, acceptance, consideration, capacity, legality

Step 30: Legal writing for contracts: 02-legal-writing/ — plain language drafting, defined terms

Step 31: Employment law: jurisdictions/ — employment legislation by jurisdiction

Step 32: Property law: jurisdictions/ — landlord and tenant legislation by jurisdiction

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Step 33: Ethics in drafting: 05-legal-ethics-and-professional-conduct/ — duties when drafting for multiple parties

Step 34: Document automation: 10-legal-technology-and-innovation/ — systems for automating template completion

2. Litigation Templates

The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-02 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, CA, NZ

Paper section references: `uk-moj-n1-claim-form.pdf`, `uk-n1a-notes-for-claimant.pdf`

Overview

This document provides templates for the core documents used in litigation: statement of claim, defense, subpoena, notice of motion, and affidavit of service. Each template includes court-specific formatting requirements, jurisdiction-specific form numbers, filing deadlines, and service requirements.

Litigation documents must comply with the applicable rules of court. Unlike transactional documents where the parties have substantial freedom in format and content, court documents must follow prescribed forms and comply with detailed procedural rules. Non-compliance can result in the document being struck out, costs orders, or dismissal of the proceedings.

Critical Note: Court forms and rules change frequently. Always verify current form numbers, filing fees, and procedural requirements against the relevant court's website before filing.

Template 1: Statement of Claim

Purpose

A statement of claim (called a complaint in the US, a claim form and particulars of claim in the UK) is the originating process by which a plaintiff commences civil proceedings. It sets out the material facts relied upon, the legal basis for the claim, and the relief sought. It must be filed with the court and served on the defendant within the time prescribed by the rules.

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Court-Specific Form Numbers

Jurisdiction	Form	Rules Reference
NSW (Supreme/District)	Form 6 UCPR	Uniform Civil Procedure Rules 2005 (NSW) r 6.2
NSW (Local Court)	Form 2 LCR	Local Court Rules 2009
Federal Court (AU)	Form 17	Federal Court Rules 2011 r 8.21
Victoria (Supreme)	Form 5A	Supreme Court (General Civil Procedure) Rules 2015 r 5.02
US (Federal)	No prescribed form; must comply with FRCP	Federal Rules of Civil Procedure, Rule 8
England and Wales	Form N1 (claim form) + Particulars of Claim	Civil Procedure Rules 1998, Part 7
Canada (Ontario)	Form 14A	Rules of Civil Procedure, Rule 14.03
New Zealand	Form G9 (High Court)	High Court Rules 2016, r 5.26

Filing Time Limits (Limitation Periods)

Cause of Action	AU (NSW)	US (Federal/General)	UK	CA (ON)	NZ
Contract	6 years (Limitation Act 1969 s 14)	Varies by state (typically 4-6 years)	6 years (Limitation Act 1980 s 5)	2 years (Limitations Act 2002 s 4)	6 years (Limitation Act 2010 s 11)
Tort (general)	6 years (s 14)	Varies (typically 2-3 years)	6 years (s 2)	2 years (s 4)	6 years (s 11)
Personal injury	3 years from discoverability (s 50C)	Varies (typically 2-3 years)	3 years (s 11)	2 years (s 4)	3 years from discoverability (ACC regime applies)
Defamation	1 year, extendable to 3 (s 14B)	Varies (typically 1-2 years)	1 year (s 4A)	2 years (s 4)	2 years (Defamation Act 1992 s 55)

Template Text

IN THE [COURT NAME] OF [STATE/JURISDICTION]

[REGISTRY/DIVISION]

Case No.: [TO BE ASSIGNED ON FILING]

BETWEEN:

[PLAINTIFF FULL LEGAL NAME] [ACN/ABN IF APPLICABLE] Plaintiff

AND

[DEFENDANT FULL LEGAL NAME] [ACN/ABN IF APPLICABLE] [FIRST/SECOND] Defendant

STATEMENT OF CLAIM

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Filed: [DATE]

The Plaintiff claims:

Step 1: Damages in the amount of [AMOUNT OR “to be assessed”].

Step 2: Interest pursuant to [APPLICABLE INTEREST STATUTE, e.g., “section 100 of the Civil Procedure Act 2005 (NSW)"].

Step 3: Costs.

Step 4: [ANY FURTHER OR OTHER RELIEF, e.g., “An injunction restraining the Defendant from…”].

PLEADINGS

A. The Parties

Step 5: The Plaintiff is [DESCRIPTION, e.g., “a company incorporated under the Corporations Act 2001 (Cth) and carrying on business as a software developer”].

Step 6: The [First] Defendant is [DESCRIPTION, e.g., “a company incorporated under the Corporations Act 2001 (Cth) and carrying on business as a technology consultant”].

Step 7: [IF APPLICABLE: The Second Defendant is…]

B. Background Facts

Step 8: On or about [DATE], the Plaintiff and the Defendant entered into a [TYPE OF AGREEMENT] (the **“Agreement”**), a copy of which is annexed hereto and marked **“A”**.

Step 9: [SET OUT MATERIAL FACTS IN NUMBERED PARAGRAPHS. EACH PARAGRAPH SHOULD CONTAIN ONE MATERIAL FACT.]

Step 10: Pursuant to the Agreement, the Defendant was obliged to [SET OUT CONTRACTUAL OBLIGATION].

Step 11: [CONTINUE WITH CHRONOLOGICAL NARRATIVE OF MATERIAL FACTS.]

C. Breach / Cause of Action

Step 12: The Defendant breached the Agreement in that [PARTICULARS OF BREACH]:

(a) [FIRST PARTICULAR OF BREACH]; (b) [SECOND PARTICULAR OF BREACH]; and (c) [FURTHER PARTICULARS].

Particulars [PROVIDE SPECIFIC DETAILS OF WHEN, HOW, AND IN WHAT RESPECT THE BREACH OCCURRED.]

Step 13: [ALTERNATIVE OR ADDITIONAL CAUSE OF ACTION, e.g.:]

Further or in the alternative, the Defendant engaged in misleading or deceptive conduct in contravention of [section 18 of the Australian Consumer Law / section 5 of the Federal Trade Commission Act / section 2(1) of the Consumer Protection from Unfair Trading Regulations 2008 (UK)] in that [PARTICULARS].

D. Loss and Damage

Step 14: By reason of the matters set out above, the Plaintiff has suffered loss and damage.

Particulars of Loss and Damage (a) [CATEGORY 1, e.g., “Cost of rectification works: $[AMOUNT]"] (b) [CATEGORY 2, e.g., “Loss of revenue for the period [DATE] to [DATE]:

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$[AMOUNT]"] (c) [CATEGORY 3, e.g., “Wasted expenditure: $[AMOUNT]"] (d) Further particulars will be provided prior to trial.

Filed for the Plaintiff by:

[SOLICITOR NAME] [FIRM NAME] [ADDRESS] [TELEPHONE] [EMAIL] [REFERENCE]

Key Content Requirements

Element	Requirement	Consequence of Omission
Material facts	Must plead all facts essential to the cause of action	Claim may be struck out as disclosing no reasonable cause of action
Particulars	Must provide sufficient detail for the defendant to understand the case	Court may order further and better particulars; may strike out
Relief sought	Must specify the relief claimed	Court cannot grant relief not claimed
Verification	Some jurisdictions require verification by the plaintiff	Document may be rejected for filing
Annexures	Must identify and annex key documents relied upon	May need to amend to include later

Service Requirements

Jurisdiction	Method	Time Limit After Filing
NSW	Personal or substituted service (UCPR r 10.20)	Valid for 6 months (UCPR r 6.2(4))
Federal Court (AU)	Personal, substituted, or agreed method (FCR r 10.01)	Valid for 12 months
US (Federal)	Per FRCP Rule 4 (personal, agent, mail with waiver)	90 days (FRCP r 4(m))
England and Wales	Per CPR r 6.3 (personal, first class post, DX, fax, email)	4 months (domestic); 6 months (overseas)
Ontario	Personal or alternative (Rule 16)	6 months
New Zealand	Personal or substituted (HCR r 6.1)	12 months

Template 2: Defense (and Counterclaim)

Purpose

A defense is the defendant’s response to the statement of claim. It must address each allegation in the claim, either admitting it, denying it, or stating that the defendant does not admit the allegation (putting the plaintiff to proof). A counterclaim may be filed with the defense if the defendant has claims against the plaintiff.

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Filing Time Limits

Jurisdiction	Time to File Defense
NSW	28 days after service (UCPR r 14.3)
Federal Court (AU)	28 days after service (FCR r 16.32)
US (Federal)	21 days after service; 60 days if service waived (FRCP r 12(a))
England and Wales	14 days after service of particulars; 28 days with acknowledgment of service (CPR r 15.4)
Ontario	20 days (local); 40 days (outside province); 60 days (outside country) (Rule 18.01)
New Zealand	25 working days (HCR r 5.53)

Template Text

IN THE [COURT NAME] OF [STATE/JURISDICTION]

Case No.: [CASE NUMBER]

BETWEEN:

[PLAINTIFF NAME] Plaintiff

AND

[DEFENDANT NAME] Defendant

DEFENSE [AND COUNTERCLAIM]

Filed: [DATE]

A. Response to Statement of Claim

Step 15: As to paragraph 1 of the Statement of Claim, the Defendant admits [that portion admitted] and [denies / does not admit] [that portion denied].

Step 16: As to paragraph 2 of the Statement of Claim, the Defendant [admits / denies / does not admit] [the allegation].

Step 17: [CONTINUE RESPONDING TO EACH PARAGRAPH OF THE STATEMENT OF CLAIM.]

Step 18: As to paragraph [X] of the Statement of Claim, the Defendant denies that [specific allegation]. The Defendant says that [positive case in response, with particulars].

Particulars [PROVIDE SPECIFIC FACTS RELIED UPON IN SUPPORT OF THE DENIAL.]

B. Affirmative Defenses

Step 19: Further and in the alternative, the Defendant says the Plaintiff's claim is barred by [AFFIRMATIVE DEFENSE, e.g.]:

(a) the Limitation Act [YEAR] in that the cause of action accrued on [DATE], more than [X] years before the commencement of proceedings; (b) contributory negligence on the part of the Plaintiff, in that [PARTICULARS]; (c) the Plaintiff's failure to mitigate its loss, in that [PARTICULARS]; (d) [FURTHER AFFIRMATIVE DEFENSES].

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C. Counterclaim [IF APPLICABLE]

Step 20: The Defendant counterclaims against the Plaintiff as follows.

Step 21: [SET OUT COUNTERCLAIM FOLLOWING THE SAME FORMAT AS A STATEMENT OF CLAIM, WITH MATERIAL FACTS, CAUSE OF ACTION, AND RELIEF SOUGHT.]

Step 22: The Defendant claims on the Counterclaim:

(a) Damages in the amount of [AMOUNT OR “to be assessed”]. (b) Interest. (c) Costs.

Filed for the Defendant by:

[SOLICITOR NAME] [FIRM NAME] [ADDRESS] [TELEPHONE] [EMAIL] [REFERENCE]

Template 3: Subpoena

Purpose

A subpoena is a court order requiring a person to produce documents (subpoena to produce / *subpoena duces tecum*), attend to give evidence (subpoena to attend / *subpoena ad testificandum*), or both. Subpoenas compel third parties who are not parties to the proceedings to provide documents or evidence relevant to the dispute.

Template Text — Subpoena to Produce

IN THE [COURT NAME] OF [STATE/JURISDICTION]

Case No.: [CASE NUMBER]

BETWEEN:

[PLAINTIFF NAME] Plaintiff

AND

[DEFENDANT NAME] Defendant

SUBPOENA TO PRODUCE

To: [ADDRESSEE FULL NAME AND ADDRESS]

You are ordered to produce to the Court at [COURT ADDRESS] on [RETURN DATE] at [TIME] the documents and things described in the Schedule below.

You must produce these documents by the date shown above. You need not attend personally if you produce the documents to the Court registry by that date.

Failure to comply with this subpoena without lawful excuse is a contempt of court and may result in a fine or imprisonment.

Schedule — Documents to be Produced

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Step 23: All [DESCRIPTION OF DOCUMENTS, e.g., “correspondence, emails, and file notes”] between [PARTIES TO COMMUNICATIONS] relating to [SUBJECT MATTER] for the period [START DATE] to [END DATE].

Step 24: All [DESCRIPTION, e.g., “financial records including invoices, receipts, and bank statements”] relating to [SUBJECT MATTER] for the period [START DATE] to [END DATE].

Step 25: [CONTINUE WITH SPECIFIC, IDENTIFIED CATEGORIES OF DOCUMENTS.]

Issued at the request of:

[SOLICITOR NAME] [FIRM NAME] [ADDRESS] [TELEPHONE] [EMAIL] [REFERENCE]

Key Requirements for Subpoenas

Requirement	Detail
Specificity	Must describe documents with reasonable specificity; cannot be a “fishing expedition”
Relevance	Documents sought must be relevant to an issue in the proceedings
Legitimate forensic purpose	Must serve a legitimate forensic purpose, not be oppressive or used for discovery against a non-party
Conduct money	AU: Must be served with conduct money (reasonable cost of compliance). US: FRCP r 45(d)(2) — reasonable costs. UK: Reasonable costs must be tendered.
Leave requirement	Some courts require leave to issue a subpoena to a non-party
Objection	The addressee may object on grounds of privilege, oppression, or lack of legitimate forensic purpose

Template 4: Notice of Motion

Purpose

A notice of motion is the document used to bring interlocutory (interim) applications before the court during the course of proceedings. Common interlocutory applications include applications for injunctions, security for costs, summary judgment, strike-out of pleadings, discovery orders, and adjournments.

Template Text

IN THE [COURT NAME] OF [STATE/JURISDICTION]

Case No.: [CASE NUMBER]

BETWEEN:

[PLAINTIFF NAME] Plaintiff

AND

[DEFENDANT NAME] Defendant

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NOTICE OF MOTION

Filed: [DATE]

To the [Plaintiff/Defendant] and the Court:

The [Plaintiff/Defendant] will apply to the Court at [COURT ADDRESS] on [DATE] at [TIME] or as soon thereafter as counsel can be heard for the following orders:

Orders Sought:

Step 26: [FIRST ORDER SOUGHT, e.g., “That the Defendant’s defense filed on [DATE] be struck out pursuant to [UCPR r 14.28 / FRCP r 12(f) / CPR r 3.4].”]

Step 27: [SECOND ORDER SOUGHT, e.g., “That the Defendant provide security for the Plaintiff’s costs in the amount of $[AMOUNT] pursuant to [Corporations Act 2001 s 1335 / FRCP r 65 / CPR r 25.12].”]

Step 28: [FURTHER ORDERS SOUGHT.]

Step 29: Costs of and incidental to this motion.

Step 30: Such further or other orders as the Court sees fit.

Grounds:

This application is made on the grounds that:

Step 31: [FIRST GROUND, e.g., “The defense discloses no reasonable defense to the claim.”]

Step 32: [SECOND GROUND, e.g., “The Defendant is a corporation and there is reason to believe that it will be unable to pay the Plaintiff’s costs if ordered to do so.”]

Step 33: [FURTHER GROUNDS.]

Evidence:

This application is supported by:

Step 34: The affidavit of [DEPONENT NAME] sworn/affirmed [DATE].

Step 35: [FURTHER AFFIDAVITS OR EVIDENCE.]

Time Estimate: [ESTIMATED HEARING TIME, e.g., “Half day”]

Filed for the [Plaintiff/Defendant] by:

[SOLICITOR NAME] [FIRM NAME] [ADDRESS] [TELEPHONE] [EMAIL] [REFERENCE]

Template 5: Affidavit of Service

Purpose

An affidavit of service is a sworn statement (or affirmed statement) by the person who served a document, confirming when, where, how, and on whom the document was served. It provides evidence to the court that procedural service requirements have been satisfied. This is critical because a court generally cannot make orders against a party who has not been served.

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Template Text

IN THE [COURT NAME] OF [STATE/JURISDICTION]

Case No.: [CASE NUMBER]

BETWEEN:

[PLAINTIFF NAME] Plaintiff

AND

[DEFENDANT NAME] Defendant

AFFIDAVIT OF SERVICE

I, [SERVER'S FULL NAME], of [SERVER'S ADDRESS], [OCCUPATION], [swear/affirm]:

Step 36: On [DATE OF SERVICE] at approximately [TIME OF SERVICE], I served [DESCRIPTION OF DOCUMENT(S) SERVED, e.g., "the Statement of Claim and this Affidavit of Service"] on [PERSON SERVED'S FULL NAME] by [METHOD OF SERVICE]:

[SELECT APPLICABLE METHOD:]

(a) Personal Service: I personally delivered a sealed copy of the document(s) to [PERSON SERVED] at [ADDRESS WHERE SERVICE EFFECTED]. I identified [PERSON SERVED] by [METHOD OF IDENTIFICATION, e.g., "asking them to confirm their name," "recognizing them from a photograph provided to me by the solicitor for the Plaintiff"].

(b) Substituted Service: Pursuant to the order of [JUDGE/REGISTRAR NAME] made on [DATE OF ORDER], I served the document(s) by [METHOD AUTHORIZED BY ORDER, e.g., "sending a copy by registered post to [ADDRESS]" / "sending a copy by email to [EMAIL ADDRESS]" / "leaving a copy affixed to the front door of [ADDRESS]"].

(c) Service on Corporation: I served the document(s) on [CORPORATION NAME] by [METHOD, e.g., "leaving a copy at the registered office at [ADDRESS]" / "posting a copy by prepaid post to the registered office at [ADDRESS]"] in accordance with [section 109X of the Corporations Act 2001 (Cth) / applicable corporate service provision].

Step 37: At the time of service, the person I served appeared to be over the age of 18 years.

Step 38: Annexed hereto and marked **"A"** is a true copy of the document(s) served.

[IF APPLICABLE:]

Step 39: I was unable to effect personal service because [REASONS]. I attempted personal service on the following occasions:

(a) [DATE, TIME, LOCATION, RESULT]; (b) [DATE, TIME, LOCATION, RESULT]; and (c) [DATE, TIME, LOCATION, RESULT].

[Sworn/Affirmed] at [PLACE] on [DATE]

Before me:

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[JUSTICE OF THE PEACE / SOLICITOR / NOTARY PUBLIC / COMMISSIONER FOR OATHS] [NAME AND QUALIFICATION]

[DEPONENT'S SIGNATURE] [DEPONENT'S NAME]

Formatting Rules by Jurisdiction

Requirement	AU	US	UK
Oath/Affirmation	Either (UCPR r 35.2)	Either (varies by state)	Statement of truth (CPR PD 22); or affidavit in limited cases
Witness qualification	JP, solicitor, or authorized person	Notary public, court clerk	Solicitor, commissioner for oaths
Exhibits/Annexures	Numbered and identified by exhibit certificate	Numbered and attached	Exhibit certificate required
Jurat form	"Sworn/Affirmed at [place] on [date]"	Varies by state	"Sworn/Affirmed at [place] on [date]"
Filing	Filed with court registry	Filed with clerk of court	Filed at court office

Common Pitfalls Across All Litigation Templates

Step 40: **Incorrect form number or format.** Each court has specific form requirements. Using the wrong form or non-compliant formatting can result in rejection at the registry.

Step 41: **Missing verification or certificate of truth.** Some jurisdictions require a verification statement or certificate confirming the truth of the contents. The UK requires a statement of truth on most documents; failure to include it renders the document a nullity.

Step 42: **Defective service.** Service that does not comply with the rules is not valid service, and any judgment obtained may be set aside. Always confirm current service rules and document compliance meticulously.

Step 43: **Time limit miscalculation.** Limitation periods and filing deadlines are strict. In many jurisdictions, the day of the event is excluded and the last day of the period must be a business day. Always calculate deadlines conservatively and calendar them with sufficient lead time.

Step 44: **Insufficient particulars.** A statement of claim that pleads conclusions rather than material facts will be struck out. State the facts; let the court draw the legal conclusions.

Step 45: **Subpoena as discovery substitute.** A subpoena to a non-party cannot be used as a substitute for discovery between the parties. Courts will set aside subpoenas that amount to an impermissible fishing expedition.

Cross-References

Step 46: Civil procedure: 04-court-procedure-and-advocacy/01-civil-procedure-overview.md — procedural context for all litigation templates

Step 47: Legal writing for pleadings: 02-legal-writing/ — drafting standards for court documents

Step 48: Evidence law: 04-court-procedure-and-advocacy/03-evidence-law-practice.md — admissibility of affidavit evidence

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Step 49: Ethics in litigation: 05-legal-ethics-and-professional-conduct/ — duties of disclosure, not misleading the court

Step 50: Contract templates: 01-contract-templates.md — agreements that may form the basis of contract claims

3. Corporate Templates

The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-03 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, CA, NZ

Paper section references: `accc-guide-competition-consumer-law.pdf`, `accc-compliance-enforcement-policy-2025-26.pdf`

Overview

This document provides templates for core corporate governance documents: company constitution, shareholder agreement, directors' circular resolution, and meeting minutes. Each template includes statutory requirements, key clauses, ASIC and equivalent filing requirements, and jurisdiction-specific variations.

Corporate documents operate within a statutory framework that varies significantly across jurisdictions. In Australia, the Corporations Act 2001 (Cth) provides a comprehensive code supplemented by replaceable rules that apply unless displaced by a constitution. In the United States, state corporation laws (principally the Delaware General Corporation Law) provide the framework, supplemented by the certificate of incorporation and bylaws. In the United Kingdom, the Companies Act 2006 provides the governing framework, with model articles of association applying by default.

Template 1: Company Constitution

Purpose

A company constitution (articles of association in the UK, bylaws in the US) is the internal governing document of a corporation. It sets out the rules for the company's internal management, including share rights, director powers, meeting procedures, and dividend policy. In Australia, proprietary companies may either adopt the replaceable rules in the Corporations Act 2001 or adopt a custom constitution that displaces some or all of those rules.

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Replaceable Rules vs Custom Constitution (AU)

Factor	Replaceable Rules	Custom Constitution
Source	Corporations Act 2001 ss 135-140; specific sections marked as replaceable rules	Drafted and adopted by the company
Default	Apply automatically unless displaced	Must be adopted by special resolution (s 136)
Single-member companies	Do not apply (s 135(1)(a))	Required for single-member proprietary companies
Amendment	Cannot be amended (they are statutory provisions)	Amended by special resolution (75% of votes cast: s 136(2))
ASIC filing	No filing required	Must be lodged with ASIC (s 136(5))
Customization	No	Yes — can tailor share classes, pre-emptive rights, dispute mechanisms

Template Text

CONSTITUTION of [COMPANY NAME] [PTY LTD / LIMITED]

ACN [COMPANY ACN]

Adopted by special resolution on [DATE].

1. Definitions and Interpretation

1.1 In this Constitution:

"Act" means the Corporations Act 2001 (Cth) as amended from time to time.

"Board" means the board of directors of the Company.

"Company" means [COMPANY NAME] [PTY LTD / LIMITED] ACN [ACN].

"Constitution" means this constitution as amended from time to time.

"Director" means a person appointed as a director of the Company.

"Member" means a person registered as a holder of Shares.

"Ordinary Resolution" means a resolution passed by a simple majority of votes cast.

"Share" means a share in the capital of the Company.

"Special Resolution" has the meaning given in section 9 of the Act.

1.2 Unless the context requires otherwise, words defined in the Act have the same meaning in this Constitution.

1.3 If there is any inconsistency between this Constitution and the Act, the Act prevails to the extent of the inconsistency.

1.4 The replaceable rules in the Act do not apply to the Company.

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2. Share Capital

2.1 The Company may issue Shares in one or more classes, with such rights, privileges, and restrictions as the Board determines, subject to the Act and this Constitution.

2.2 [OPTIONAL — PRE-EMPTIVE RIGHTS:] Before issuing any new Shares, the Board must first offer those Shares to existing Members in proportion to their existing shareholdings, at the same price and on the same terms as the proposed issue. Each Member has [OFFER PERIOD, e.g., “twenty-one (21) days”] to accept or decline the offer. Only Shares not taken up by existing Members may be issued to other persons.

2.3 The Company must not issue shares to a person unless the Board has first obtained the approval of existing Members by Ordinary Resolution, except where the issue is: (a) an issue to existing Members in proportion to their existing holdings; or (b) permitted by the Act without member approval.

3. Transfer of Shares

3.1 Subject to this Constitution, Shares are transferable.

3.2 [PTY LTD RESTRICTION:] The Board may refuse to register any transfer of Shares and is not required to provide reasons for the refusal. [NOTE: For proprietary companies (AU), the Corporations Act 2001 s 113(1) requires restrictions on share transfer.]

3.3 [OPTIONAL — RIGHT OF FIRST REFUSAL:] A Member who wishes to transfer Shares (the **“Selling Member”**) must first offer those Shares to the other Members by written notice specifying the number of Shares, the proposed price, and the terms of sale. The other Members have [OFFER PERIOD, e.g., “twenty-eight (28) days”] to accept the offer in proportion to their existing holdings. If the other Members do not acquire all the offered Shares, the Selling Member may transfer the remaining Shares to a third party at a price no less than the offered price, within [TRANSFER PERIOD, e.g., “sixty (60) days”].

4. Directors

4.1 The Company must have at least [MINIMUM DIRECTORS, e.g., “one (1) director” for a proprietary company; “three (3) directors” for a public company] who is an individual and at least [NUMBER] of whom must ordinarily reside in Australia. [NOTE: s 201A Corporations Act 2001.]

4.2 Directors are appointed and removed by Ordinary Resolution of the Members, or as otherwise provided by this Constitution and the Act.

4.3 The Board may appoint a person as an additional Director to hold office until the next general meeting.

4.4 A Director may resign by written notice to the Company.

5. Powers and Duties of Directors

5.1 The business of the Company is managed by or under the direction of the Board.

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5.2 The Board may exercise all powers of the Company that are not required by the Act or this Constitution to be exercised by the Members.

5.3 Directors must comply with their duties under the Act, including the duties in sections 180-184 (duties of care, good faith, proper purpose, no improper use of position or information).

6. Directors' Meetings

6.1 The Board may meet, adjourn, and otherwise regulate its meetings as it sees fit.

6.2 A Director may call a meeting of the Board by giving reasonable notice to all other Directors.

6.3 The quorum for a meeting of the Board is [QUORUM, e.g., "a majority of Directors entitled to vote"].

6.4 Questions arising at a meeting are decided by a majority of votes. The chairperson has a casting vote in the event of an equality of votes. [OPTIONAL: Omit casting vote for closely held companies.]

6.5 A meeting of the Board may be held using any technology that allows each Director to communicate with every other Director simultaneously. A Director who participates in a meeting by such technology is taken to be present at the meeting.

7. Circular Resolutions of Directors

7.1 The Board may pass a resolution without a meeting if all Directors entitled to vote sign a document containing a statement that they are in favor of the resolution set out in the document. [NOTE: s 248A Corporations Act 2001.]

7.2 Separate copies of the document may be signed by different Directors. The resolution is passed when the last Director signs.

8. Members' Meetings

8.1 The Company must hold an annual general meeting within [TIMEFRAME PER ACT, e.g., "five (5) months after the end of its financial year"], unless exempted under the Act. [NOTE: Proprietary companies are generally exempted from holding AGMs: s 250N.]

8.2 The Board may call a general meeting at any time. Members with at least 5% of the votes may requisition a meeting under section 249D of the Act.

8.3 At least [NOTICE PERIOD, e.g., "twenty-one (21) days for a special resolution; twenty-eight (28) days for an AGM of a listed company"] written notice must be given.

8.4 The quorum for a general meeting is [QUORUM, e.g., "two (2) Members present in person or by proxy holding at least [PERCENTAGE]% of the issued Shares"].

9. Dividends

9.1 The Board may determine that a dividend is payable and fix the amount, the time for payment, and the method of payment.

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9.2 No dividend may be paid except out of profits of the Company. [NOTE: s 254T Corporations Act 2001 — dividends may only be paid if the company's assets exceed its liabilities, payment is fair and reasonable, and payment does not materially prejudice the company's ability to pay creditors.]

10. Winding Up

10.1 If the Company is wound up, the liquidator may, with the sanction of a Special Resolution, distribute among the Members in kind any part of the Company's property.

10.2 Subject to the rights of any holders of Shares issued on special terms, on a winding up the assets of the Company remaining after payment of debts are distributed among the Members in proportion to their shareholdings.

11. Indemnity and Insurance

11.1 To the maximum extent permitted by the Act, the Company indemnifies each officer (as defined in the Act) against all liabilities incurred in their capacity as an officer, except liability to the Company or a related body corporate, or liability arising from conduct involving a lack of good faith.

11.2 The Company may pay premiums for insurance against liability for officers to the extent permitted by the Act. [NOTE: ss 199A-199C Corporations Act 2001.]

12. Amendment

12.1 This Constitution may be amended only by Special Resolution passed at a general meeting of Members in accordance with section 136(2) of the Act.

Jurisdiction Comparison

Feature	AU	US (Delaware)	UK	CA (Federal)	NZ
Governing statute	Corporations Act 2001	DGCL; also certificate of incorporation	Companies Act 2006	CBCA	Companies Act 1993
Internal rules document	Constitution	Bylaws (+ certificate of incorporation)	Articles of association	By-laws (+ articles)	Constitution
Default rules	Replaceable rules	DGCL default provisions	Model articles (SI 2008/3229)	CBCA default provisions	Schedule 2 default rules
Amendment threshold	75% (special resolution)	Majority of outstanding stock (cert.); board (bylaws)	75% (special resolution)	66.7% (special resolution)	75% (special resolution)
Filing requirement	Lodge with ASIC	File cert. amendments with DE Secretary of State	File with Companies House	File with Corporations Canada	File with NZ Companies Office
Minimum directors	1 (proprietary); 3 (public)	1	1 (private); 2 (public)	1 (non-distributing); 3 (distributing)	1

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Template 2: Shareholder Agreement

Purpose

A shareholder agreement is a contract between the shareholders of a company that supplements the constitution. It governs matters such as decision-making, share transfer restrictions, dividend policy, exit mechanisms, and dispute resolution. Unlike a constitution, a shareholder agreement is a private contract that is not filed with any regulatory authority and is not publicly available.

Template Text

SHAREHOLDER AGREEMENT

Date: [DATE]

Parties:

Step 1: [COMPANY FULL LEGAL NAME] ([ACN/COMPANY NUMBER]) of [REGISTERED ADDRESS] (**"Company"**)

Step 2: [SHAREHOLDER 1 NAME] of [ADDRESS] (**"Shareholder 1"**)

Step 3: [SHAREHOLDER 2 NAME] of [ADDRESS] (**"Shareholder 2"**)

Step 4: [ADDITIONAL SHAREHOLDERS AS REQUIRED]

(each a **"Shareholder"** and together the **"Shareholders"**)

Background

A. The Company is a [TYPE] company with issued share capital as set out in Schedule 1.

B. The Shareholders wish to regulate their rights and obligations in relation to the Company on the terms of this Agreement.

1. Conduct of Business

1.1 The Company's business is [DESCRIPTION OF BUSINESS] (the **"Business"**).

1.2 The Shareholders must exercise their powers as shareholders and procure that Directors appointed by them exercise their powers to ensure the Company carries on the Business in accordance with this Agreement.

2. Board Composition

2.1 The Board will consist of [NUMBER] Directors.

2.2 [SHAREHOLDER 1] is entitled to appoint [NUMBER] Directors.

2.3 [SHAREHOLDER 2] is entitled to appoint [NUMBER] Directors.

2.4 [OPTIONAL: The Shareholders must jointly appoint [NUMBER] independent Director(s).]

2.5 A Shareholder may remove and replace a Director appointed by that Shareholder at any time by written notice to the Company.

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3. Reserved Matters

3.1 The Company must not take any of the following actions without the prior written consent of Shareholders holding at least [THRESHOLD, e.g., “75%"] of the issued Shares (or the unanimous consent of all Shareholders, where indicated):

(a) amend the Constitution; (b) issue new Shares or grant options over Shares; (c) declare or pay a dividend; (d) incur borrowings exceeding [THRESHOLD AMOUNT]; (e) enter into any contract with a value exceeding [THRESHOLD AMOUNT]; (f) appoint or remove the CEO or other key management personnel; (g) change the nature of the Business; (h) commence or settle litigation with a value exceeding [THRESHOLD AMOUNT]; (i) wind up or deregister the Company (unanimous consent); or (j) admit a new Shareholder (unanimous consent).

4. Pre-Emptive Rights on Share Issues

4.1 Before issuing any new Shares, the Company must first offer them to existing Shareholders in proportion to their existing shareholdings, at the same price and on the same terms, with an acceptance period of [PERIOD, e.g., “twenty-one (21) days”].

5. Transfer Restrictions

5.1 A Shareholder must not transfer any Shares except in accordance with this clause 5.

5.2 **Right of First Refusal.** Before transferring Shares, the Selling Shareholder must offer them to the remaining Shareholders in proportion to their holdings, at the proposed transfer price, with an acceptance period of [PERIOD].

5.3 **Tag-Along Rights.** If a Shareholder receives an offer to acquire [THRESHOLD, e.g., “50% or more”] of the issued Shares, each other Shareholder has the right to sell their Shares to the offeror on the same terms and at the same price.

5.4 **Drag-Along Rights.** If Shareholders holding [THRESHOLD, e.g., “75% or more”] of the issued Shares accept an offer for all Shares, the remaining Shareholders must sell their Shares to the offeror on the same terms.

6. Deadlock

6.1 If the Board or Shareholders are unable to reach agreement on a matter requiring their approval within [PERIOD, e.g., “thirty (30) days”] of the matter first being raised (a **“Deadlock”**), the following procedure applies:

(a) The Shareholders must first attempt to resolve the Deadlock through good faith negotiation between their respective [CEO/Managing Director/Senior Representative].

(b) If not resolved within [PERIOD], the matter must be referred to mediation.

(c) If mediation does not resolve the Deadlock within [PERIOD], either Shareholder may invoke the buy-sell mechanism in clause 7.

7. Buy-Sell (Shotgun) Mechanism

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7.1 Following a Deadlock that is not resolved under clause 6, any Shareholder (the **“Offeror”**) may serve a notice on the other Shareholders (each an **“Offeree”**) specifying a price per Share (the **“Offer Price”**).

7.2 Within [PERIOD, e.g., “thirty (30) days”], each Offeree must elect to either: (a) sell all of its Shares to the Offeror at the Offer Price; or (b) purchase all of the Offeror’s Shares at the Offer Price.

7.3 If an Offeree fails to elect within the period, the Offeree is deemed to have elected to sell.

8. Dividend Policy

8.1 Subject to the Act and the Company’s financial position, the Company will distribute [PERCENTAGE, e.g., “not less than 50%"] of its annual after-tax profits as dividends, unless the Shareholders unanimously agree otherwise.

9. Restraint of Trade

9.1 During the term of this Agreement and for [PERIOD, e.g., “twelve (12) months”] after ceasing to be a Shareholder, each Shareholder must not directly or indirectly engage in any business that competes with the Business within [GEOGRAPHIC AREA].

10. Governing Law and Dispute Resolution

10.1 This Agreement is governed by the laws of [GOVERNING JURISDICTION].

10.2 Disputes must be referred to mediation. If unresolved, disputes must be determined by arbitration under the [ARBITRATION RULES, e.g., “ACICA Arbitration Rules”].

Schedule 1 — Shareholdings

Shareholder	Shares	Class	Percentage
[SHAREHOLDER 1]	[NUMBER]	Ordinary	[%]
[SHAREHOLDER 2]	[NUMBER]	Ordinary	[%]

Template 3: Directors’ Resolution (Circular)

Purpose

A circular resolution allows directors to pass a resolution without meeting, provided all directors entitled to vote sign the resolution. This is the most common method of passing routine board decisions in small to medium companies.

Template Text

[COMPANY NAME] [PTY LTD / LIMITED] ACN [COMPANY ACN]

CIRCULAR RESOLUTION OF DIRECTORS

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Pursuant to [section 248A of the Corporations Act 2001 (Cth) / clause [X] of the Company's Constitution / section 141 of the Companies Act 2006 (UK) / section 117(1) DGCL (US — written consent in lieu of meeting)]

The undersigned, being all Directors of [COMPANY NAME] entitled to vote on the resolution, resolve as follows:

Resolution [NUMBER]

THAT [DESCRIPTION OF RESOLUTION, e.g., "the Company approve and enter into the [Agreement Name] between the Company and [Counterparty Name] on the terms of the draft annexed to this resolution"].

Resolution [NUMBER]

THAT [DESCRIPTION OF FURTHER RESOLUTION, e.g., "any one Director be authorized to execute the Agreement and all documents necessary to give effect to it on behalf of the Company"].

[REPEAT FOR ADDITIONAL RESOLUTIONS]

This resolution takes effect on the date on which the last Director signs.

Director	Signature	Date
[DIRECTOR 1 NAME]	_____	[DATE]
[DIRECTOR 2 NAME]	_____	[DATE]
[DIRECTOR 3 NAME]	_____	[DATE]

Template 4: Minutes of Meeting

Purpose

Minutes record the proceedings and decisions of board meetings and general meetings. They serve as evidence of the decisions made, the matters discussed, and the presence of a quorum. In Australia, a company must keep minutes of meetings and make them available for inspection (Corporations Act 2001 ss 251A, 251AA).

Template Text — Board Meeting

[COMPANY NAME] [PTY LTD / LIMITED] ACN [COMPANY ACN]

MINUTES OF MEETING OF DIRECTORS

Date: [DATE] **Time:** [TIME] **Place:** [LOCATION / "By video conference"]

Present:

Step 5: [DIRECTOR 1 NAME] (Chairperson)

Step 6: [DIRECTOR 2 NAME]

Step 7: [DIRECTOR 3 NAME]

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In Attendance:

Step 8: [COMPANY SECRETARY NAME] (Company Secretary)

Step 9: [OTHER ATTENDEES, e.g., “External Auditor — [NAME] of [FIRM]"]

Apologies:

Step 10: [DIRECTOR NAME] (apology received and noted)

1. Opening

The Chairperson declared a quorum present and opened the meeting at [TIME].

2. Confirmation of Previous Minutes

The minutes of the meeting of Directors held on [DATE OF PREVIOUS MEETING] were confirmed as a true and correct record.

Resolution: The Board resolved to confirm the minutes of the meeting held on [DATE]. *Moved:* [DIRECTOR NAME] *Seconded:* [DIRECTOR NAME] *Carried unanimously.*

3. Declaration of Interests

[DIRECTOR NAME] declared [an interest / no interest] in relation to [MATTER] and [remained for / withdrew from] discussion of that matter. [NOTE: s 191 Corporations Act 2001 — material personal interest disclosure.]

4. [AGENDA ITEM — e.g., “Financial Report”]

The [Company Secretary / CFO] presented the financial report for the period ending [DATE].

The Board noted [KEY MATTERS DISCUSSED].

Resolution: The Board resolved to [DECISION, e.g., “receive and note the financial report for the period ending [DATE]"]. *Moved:* [DIRECTOR NAME] *Seconded:* [DIRECTOR NAME] *Carried [unanimously / by majority].*

5. [AGENDA ITEM — e.g., “Approval of Contract”]

The Board considered the proposed [CONTRACT DESCRIPTION] between the Company and [COUNTERPARTY].

[SUMMARY OF DISCUSSION, KEY POINTS RAISED.]

Resolution: The Board resolved to [DECISION]. *Moved:* [DIRECTOR NAME] *Seconded:* [DIRECTOR NAME] *Carried.*

6. [FURTHER AGENDA ITEMS]

[CONTINUE AS REQUIRED.]

7. Next Meeting

The next meeting of Directors was scheduled for [DATE, TIME, LOCATION].

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8. Close

There being no further business, the Chairperson declared the meeting closed at [TIME].

Confirmed as a true and correct record:

Chairperson: _____ Name: [CHAIRPERSON NAME] Date: [DATE OF CONFIRMATION]

ASIC and Equivalent Filing Requirements

Document	AU (ASIC)	US (Delaware)	UK (Companies House)	CA (Corporations Canada)	NZ (Companies Office)
Constitution/Articles	Lodge on adoption or amendment (s 136(5))	File certificate of incorporation; bylaws not filed	File articles on incorporation; file special resolutions amending articles (s 30)	File articles on incorporation; file by-law amendments	File constitution on incorporation (s 32)
Shareholder agreement	Not filed	Not filed	Not filed	Not filed	Not filed
Directors' resolution	Not filed (but must be kept in records: s 251A)	Not filed (but must be kept in records)	Not filed (but must be kept for 10 years: s 248)	Not filed (but must be kept)	Not filed (but must be kept)
Minutes	Not filed (but must be kept for 7 years: s 251A)	Not filed (but must be kept)	Not filed (but must be kept for 10 years: s 248)	Not filed (but must be kept for 7 years)	Not filed (but must be kept)

Cross-References

Step 11: Corporations law: jurisdictions/ — corporate law by jurisdiction

Step 12: Corporate governance: foundations/ — theoretical frameworks for corporate governance

Step 13: Directors' duties: 05-legal-ethics-and-professional-conduct/ — fiduciary duties and conflicts

Step 14: Shareholder disputes: 04-court-procedure-and-advocacy/ — oppression remedies, derivative actions

Step 15: Contract templates: 01-contract-templates.md — commercial agreements referenced in board approvals

4. Property Templates

The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-04 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, CA, NZ

Paper section references: `law-society-nsw-contract-sale-land-2022.pdf`, `law-society-nsw-residential-conveyancing-protocol.pdf`, `nz-law-society-property-law-guidelines-2024.pdf`

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Overview

This document provides templates for property transactions: contract for sale of land, residential tenancy agreement, commercial lease heads of terms, mortgage/security agreement, and easement grant. Property transactions are among the most heavily regulated areas of legal practice, with jurisdiction-specific requirements for title registration, cooling-off periods, vendor disclosure, and stamp duty/transfer tax.

The fundamental distinction in property law across the covered jurisdictions is between Torrens title (a system of title by registration used in Australia, New Zealand, and parts of Canada) and general law title or recording systems (used in England and Wales, the United States, and parts of Canada). Under Torrens title, registration creates title and the registered proprietor's title is indefeasible (subject to limited exceptions). Under recording systems, deeds create title and recording provides notice but does not cure defects in the underlying title.

Template 1: Contract for Sale of Land (Residential)

Purpose

A contract for sale of land is the agreement by which the vendor agrees to sell, and the purchaser agrees to buy, an interest in real property. In most Australian jurisdictions, the sale of residential property must use a prescribed or approved form of contract. In other jurisdictions, the form is more flexible but must comply with the Statute of Frauds requirement that contracts for the sale of land be in writing and signed by the party to be charged.

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Jurisdiction-Specific Requirements

Requirement	AU (NSW)	US (General)	UK	CA (ON)	NZ
Prescribed form	Standard form prescribed by law societies	No prescribed form; local customs	No prescribed form; Law Society Standard Conditions common	Standard form (OREA Agreement of Purchase and Sale)	Standard form (ADLS/REINZ Agreement)
Writing requirement	Conveyancing Act 1919 s 54A	Statute of Frauds (varies by state)	Law of Property (Miscellaneous Provisions) Act 1989 s 2	Statute of Frauds (RSO 1990, c S.19)	Property Law Act 2007 s 24
Cooling-off period	5 business days (Conveyancing Act 1919 s 66S); 0.25% penalty to rescind	Varies; none in many states	None (but survey/search conditions common)	None (conditional period common in practice)	None (but due diligence clause standard in ADLS form)
Vendor disclosure	Section 149 certificate, title search, drainage diagram, strata records (NSW)	Varies by state; seller's disclosure form common	Property Information Form (TA6), Fittings and Contents Form (TA10)	Seller Property Information Statement	LIM report, title search
Title system	Torrens (Real Property Act 1900)	Recording system (varies by state)	Land Registration Act 2002 (registered land); unregistered land still exists	Land Titles Act (Torrens in ON) or Registry Act	Torrens (Land Transfer Act 2017)

Template Text

CONTRACT FOR THE SALE OF LAND

Date: [DATE]

Vendor: [VENDOR FULL LEGAL NAME] of [VENDOR ADDRESS]

Purchaser: [PURCHASER FULL LEGAL NAME] of [PURCHASER ADDRESS]

Property: [FULL PROPERTY ADDRESS] Being the land comprised in [CERTIFICATE OF TITLE / FOLIO IDENTIFIER / TITLE REFERENCE]: [TITLE REFERENCE NUMBER] Being Lot [LOT NUMBER] in [DEPOSITED PLAN / STRATA PLAN NUMBER]

Purchase Price: $[AMOUNT]

Deposit: $[AMOUNT, e.g., "10% of the Purchase Price"], payable as follows:

Step 1: $[INITIAL DEPOSIT AMOUNT] on exchange of this Contract; and

Step 2: $[BALANCE DEPOSIT] on or before [DATE].

The deposit must be paid to [DEPOSIT HOLDER, e.g., "the Vendor's solicitor"] to be held [as stakeholder / as agent for the Vendor] pending completion.

Completion Date: [DATE, OR "forty-two (42) days after the date of this Contract"]

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Inclusions: [ITEMS INCLUDED IN SALE, e.g., “all fixtures, fittings, curtains, blinds, light fittings, dishwasher, built-in wardrobes”]

Exclusions: [ITEMS EXCLUDED FROM SALE]

Encumbrances: The property is sold subject to: (a) [EXISTING ENCUMBRANCES, e.g., “Easement for drainage in favor of [COUNCIL NAME] registered as Dealing No. [NUMBER]"]; (b) [FURTHER ENCUMBRANCES]; and (c) all existing easements, restrictions, and interests recorded on the Certificate of Title.

SPECIAL CONDITIONS

SC1. Finance Condition [IF APPLICABLE]

SC1.1 This Contract is conditional upon the Purchaser obtaining unconditional approval for a loan of not less than $[LOAN AMOUNT] from a recognized financial institution on terms acceptable to the Purchaser, by [FINANCE DATE].

SC1.2 The Purchaser must use best endeavors to obtain the loan and must notify the Vendor immediately upon receiving approval or being refused.

SC1.3 If the Purchaser does not obtain loan approval by the Finance Date: (a) the Purchaser may rescind this Contract by written notice to the Vendor given within [NUMBER] business days after the Finance Date; (b) upon rescission, the deposit must be refunded to the Purchaser in full; and (c) neither party has any further claim against the other under this Contract.

SC2. Building and Pest Inspection [IF APPLICABLE]

SC2.1 This Contract is conditional upon the Purchaser obtaining and being satisfied with a building and pest inspection report on the Property by [INSPECTION DATE].

SC2.2 If the Purchaser is not satisfied with the report, the Purchaser may rescind this Contract by written notice to the Vendor given within [NUMBER] business days after the Inspection Date, and the deposit must be refunded.

SC3. Strata Records [IF APPLICABLE — STRATA/UNIT TITLE]

SC3.1 The Vendor must provide the Purchaser with a strata inspection report under [Strata Schemes Management Act 2015 (NSW) s 184 / equivalent legislation] within [NUMBER] days of the date of this Contract.

STANDARD CONDITIONS

[NOTE: In practice, the standard conditions are those published by the relevant law society or real estate institute. In NSW, the standard conditions are the 2019 Edition of the Contract for the Sale of Land published by the Law Society of NSW and the Real Estate Institute of NSW. The following are summary provisions only — the full standard conditions should be incorporated by reference.]

1. Completion

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1.1 Completion takes place on the Completion Date at the office of [the Vendor's solicitor / the land titles office / as agreed].

1.2 On completion, the Vendor must: (a) deliver to the Purchaser a registrable transfer in the approved form; (b) deliver all keys, access devices, and security codes for the Property; and (c) ensure the Property is in substantially the same condition as at the date of this Contract (fair wear and tear excepted).

1.3 On completion, the Purchaser must pay the balance of the Purchase Price (less the deposit).

2. Adjustments

2.1 The following are adjusted between the parties as at the Completion Date: (a) council rates and water rates; (b) strata levies (if applicable); (c) land tax (if applicable and as provided by the standard conditions); and (d) rent (if the property is tenanted).

3. Risk

3.1 Risk in the Property passes to the Purchaser on [completion / exchange — jurisdiction dependent].

3.2 [NSW: Risk passes on exchange under the standard conditions, but the vendor must maintain insurance until completion. UK: Risk passes on exchange. US: Varies — equitable conversion doctrine or as specified in contract.]

4. Default

4.1 If the Purchaser fails to complete on the Completion Date, the Vendor may serve a notice to complete giving the Purchaser [NUMBER, typically 14] days to complete.

4.2 If the Purchaser fails to complete within the notice period, the Vendor may: (a) terminate the Contract; (b) forfeit the deposit; (c) resell the Property; and (d) claim damages from the Purchaser for any deficiency on resale.

4.3 If the Vendor fails to complete, the Purchaser may serve a notice to complete and, if completion does not occur, may: (a) terminate the Contract; (b) recover the deposit; and (c) claim damages.

SIGNATURES

Vendor: _____ Name: [VENDOR NAME] Date: [DATE]

Purchaser: _____ Name: [PURCHASER NAME] Date: [DATE]

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Cooling-Off Periods

Jurisdiction	Period	Penalty for Rescission	Exclusions
NSW	5 business days from exchange	0.25% of purchase price	Auction sales; properties over 2.5 hectares; vendor's solicitor waiver
VIC	3 business days	$100 or 0.2% (whichever greater)	Auction sales
QLD	5 business days	0.25% of purchase price	Auction sales
SA	2 clear business days	Nil	Auction sales
WA	None	N/A	N/A
ACT	5 business days	0.25% of purchase price	Auction sales
NZ	None (but due diligence clause standard)	N/A	N/A
UK	None (exchange binds)	N/A	N/A
US	Varies by state; some states mandate for new construction	Varies	Varies

Template 2: Residential Lease/Tenancy Agreement

See 01-contract-templates.md Template 4 for a comprehensive residential tenancy agreement. This section provides supplementary property-specific clauses.

Additional Property-Specific Clauses

Outgoings Responsibility

Outgoing	Typically Landlord	Typically Tenant	Notes
Council rates	Yes	No	Statutory obligation on landowner
Water usage charges	No	Yes	Fixed water charges may be landlord
Strata levies	Yes	No	Except where lease permits pass-through
Land tax	Yes	No	Cannot be passed to residential tenants in most AU states
Building insurance	Yes	No	Contents insurance is tenant's responsibility
Repairs (structural)	Yes	No	Statutory obligation in most jurisdictions
Repairs (tenant damage)	No	Yes	Beyond fair wear and tear

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Template 3: Commercial Lease — Heads of Terms

Purpose

Heads of terms (also called letter of intent or term sheet) outline the principal commercial terms of a proposed lease before detailed drafting commences. They are typically expressed to be non-binding (except for confidentiality and costs provisions) and serve as instructions for the solicitors who will prepare the formal lease.

Template Text

HEADS OF TERMS — COMMERCIAL LEASE

Status: Subject to Contract — Not Legally Binding (Except clauses [X] (Confidentiality) and [Y] (Costs) which are binding)

Date: [DATE]

Landlord: [LANDLORD NAME] **Tenant:** [TENANT NAME]

Premises: [ADDRESS, FLOOR, SUITE, APPROXIMATE AREA IN SQ M / SQ FT]

Term	Details
Lease Term	[NUMBER] years
Option to Renew	[NUMBER] further term(s) of [NUMBER] years each
Commencement Date	[DATE]
Base Rent	$[AMOUNT] per annum (exclusive of GST/VAT), payable monthly in advance
Rent Reviews	[FIXED PERCENTAGE / CPI / MARKET REVIEW] every [NUMBER] years
Outgoings	Tenant to pay [PROPORTION, e.g., “tenant’s proportion of building outgoings”]
Permitted Use	[PERMITTED USE, e.g., “general office purposes”]
Fitout	[LANDLORD CONTRIBUTION, e.g., "$[AMOUNT] landlord fitout contribution”]
Incentive	[RENT-FREE PERIOD, e.g., "[NUMBER] months rent-free”]
Make Good	Tenant to make good on expiry to [CONDITION, e.g., “base building condition”]
Security	[BANK GUARANTEE / BOND] for [NUMBER] months’ rent and outgoings
Assignment/Subletting	Subject to landlord’s consent, not to be unreasonably withheld
Insurance	Tenant to maintain public liability ($[AMOUNT]), plate glass, and contents insurance
Governing Law	[JURISDICTION]

Confidentiality. The parties agree to keep the terms of this document confidential.

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Costs. Each party bears its own costs of negotiating and documenting the lease.

Template 4: Mortgage/Security Agreement

Purpose

A mortgage is a security interest granted over real property to secure repayment of a loan or performance of an obligation. Under Torrens title, a mortgage is created by registration on the title. Under general law, a mortgage historically involved a conveyance of the legal estate with a proviso for reconveyance upon repayment (equity of redemption).

Template Text (Summary Form)

MORTGAGE

Date: [DATE]

Mortgagor: [MORTGAGOR FULL LEGAL NAME] of [ADDRESS] (**"Mortgagor"**)

Mortgagee: [MORTGAGEE/LENDER FULL LEGAL NAME] of [ADDRESS] (**"Mortgagee"**)

Property: [PROPERTY DESCRIPTION AND TITLE REFERENCE]

Secured Amount: [PRINCIPAL AMOUNT] together with interest at [INTEREST RATE] per annum, calculated and charged [FREQUENCY, e.g., "daily and debited monthly"].

1. Grant of Mortgage

1.1 In consideration of the Mortgagee advancing or agreeing to advance the Secured Amount to the Mortgagor, the Mortgagor mortgages the Property to the Mortgagee as security for the payment of the Secured Money and the performance of the Mortgagor's obligations under this Mortgage and the associated loan agreement dated [DATE] (the **"Loan Agreement"**).

2. Mortgagor's Covenants

The Mortgagor covenants with the Mortgagee to:

(a) pay the Secured Money in accordance with the Loan Agreement; (b) keep the Property in good repair; (c) insure the Property for its full replacement value with an insurer approved by the Mortgagee, and note the Mortgagee's interest on the policy; (d) pay all rates, taxes, and charges on the Property as they fall due; (e) not lease, transfer, or further encumber the Property without the Mortgagee's prior written consent; (f) comply with all laws applicable to the Property; and (g) permit the Mortgagee to inspect the Property on reasonable notice.

3. Events of Default

3.1 An Event of Default occurs if: (a) the Mortgagor fails to pay any amount due under the Loan Agreement within [GRACE PERIOD, e.g., "fourteen (14) days"] of the due date; (b) the Mortgagor breaches any other obligation under this Mortgage or the Loan Agreement and fails to remedy the breach within [CURE PERIOD, e.g., "thirty (30) days"] of receiving notice; (c) the

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Mortgagor becomes insolvent or bankrupt; (d) the Property is materially damaged and not insured or the insurance proceeds are insufficient; or (e) a representation or warranty made by the Mortgagor proves to be materially incorrect.

4. Mortgagee’s Rights on Default

4.1 On the occurrence of an Event of Default, the Mortgagee may: (a) declare the entire Secured Amount immediately due and payable; (b) take possession of the Property; (c) sell the Property by public auction or private treaty [subject to applicable statutory notice requirements]; and (d) exercise all rights and powers conferred by the [Real Property Act 1900 (NSW) / equivalent legislation] and at law or in equity.

4.2 [AU: The Mortgagee must comply with the notice requirements in section 57(2)(b) of the Real Property Act 1900 (NSW) (one month’s notice) before exercising the power of sale. Similar notice requirements exist in all states.]

5. Application of Sale Proceeds

5.1 The proceeds of any sale by the Mortgagee must be applied in the following order: (a) costs and expenses of the sale; (b) amounts owing to prior encumbrancers (if any); (c) the Secured Money; and (d) the surplus (if any) to the Mortgagor.

6. Registration

6.1 The Mortgagor must do all things necessary to register this Mortgage on the Certificate of Title for the Property. [AU: The mortgage is registered with the relevant land titles office using the approved form (e.g., Form 05M NSW).]

Registration Requirements

Jurisdiction	Registration Body	Form	Effect of Registration
NSW	NSW Land Registry Services	Form 05M	Creates registered mortgage; priority by registration order
VIC	Land Use Victoria	Form M1	Creates registered mortgage
US	County recorder/registrar	Mortgage deed or deed of trust	Provides notice; priority by recording date
UK	HM Land Registry	Form CH1 (charge)	Creates registered charge; must register within 30 days of creation
ON (CA)	Land Registry Office	Transfer/Charge form	Creates registered charge under LTA
NZ	Land Information NZ (LINZ)	Mortgage instrument	Creates registered mortgage under LTA 2017

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Template 5: Easement Grant

Purpose

An easement is a right held by one landowner (the dominant tenement) to use the land of another (the servient tenement) for a specific purpose. Common easements include rights of way, drainage easements, services easements (for pipes, cables, and utilities), and easements for support. An easement must be created by deed (or by operation of law) and, to bind subsequent owners, must be registered on the title.

Template Text

EASEMENT

Date: [DATE]

Grantor: [SERVIENT TENEMENT OWNER NAME] of [ADDRESS], being the registered proprietor of the land comprised in [TITLE REFERENCE — SERVIENT LOT] (**"Grantor"**)

Grantee: [DOMINANT TENEMENT OWNER NAME] of [ADDRESS], being the registered proprietor of the land comprised in [TITLE REFERENCE — DOMINANT LOT] (**"Grantee"**)

1. Grant of Easement

1.1 The Grantor grants to the Grantee, as appurtenant to [DOMINANT LOT DESCRIPTION], an easement of [TYPE OF EASEMENT, e.g., "right of carriageway" / "drainage" / "services"] over the land shown marked [REFERENCE, e.g., "[HATCHED/SHADED] on the plan annexed hereto"] on the Servient Land, being part of [SERVIENT LOT DESCRIPTION] (the **"Easement Site"**).

2. Purpose and Scope

2.1 The Grantee and all persons authorized by the Grantee may use the Easement Site for the purpose of [DESCRIPTION OF PURPOSE, e.g., "passing and repassing on foot and with vehicles to and from [DOMINANT LOT] and any public road"].

2.2 The Grantee may [ADDITIONAL RIGHTS, e.g., "install, maintain, repair, and replace [DESCRIPTION OF SERVICES, e.g., 'pipes, conduits, and cables'] within the Easement Site for the purpose of providing [SERVICES, e.g., 'water, sewerage, and electricity'] to the Dominant Land"].

3. Conditions

3.1 The Grantee must: (a) exercise the rights granted by this easement in a manner that minimizes interference with the Grantor's use and enjoyment of the Servient Land; (b) promptly repair any damage to the Servient Land caused by the exercise of the easement; (c) [IF APPLICABLE: maintain any constructed path, road, or infrastructure within the Easement Site in good repair]; and (d) not obstruct or interfere with the Grantor's use of the Servient Land except to the extent reasonably necessary to exercise the rights granted by this easement.

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3.2 The Grantor must not: (a) obstruct or interfere with the Grantee's exercise of the easement; or (b) erect any structure or plant any tree on the Easement Site that would impede the Grantee's exercise of the easement.

4. Registration

4.1 The parties must take all steps necessary to register this easement on the Certificates of Title for both the Dominant Land and the Servient Land. The costs of registration are borne by [the Grantee / the parties equally].

5. Governing Law

5.1 This easement is governed by the laws of [GOVERNING JURISDICTION].

Executed as a deed.

[EXECUTION BLOCKS FOR GRANTOR AND GRANTEE]

Common Pitfalls in Property Templates

Step 3: **Failure to search title before exchange.** The title search reveals encumbrances, caveats, and restrictions that may affect the purchaser's use of the property. Searching after exchange may reveal defects that cannot be resolved before completion.

Step 4: **Inadequate disclosure.** Vendor disclosure obligations are statutory in many jurisdictions. Failure to disclose required information may give the purchaser a right to rescind or claim damages.

Step 5: **Incorrect title reference.** Errors in the folio identifier, lot number, or plan number can invalidate the registration of a transfer, mortgage, or easement.

Step 6: **Missing GST/tax analysis.** The sale of commercial property may be subject to GST/VAT. Residential property may be exempt or subject to special rules (margin scheme in Australia). Failure to address GST in the contract can create significant unexpected liabilities.

Step 7: **Easement too vague.** An easement must be sufficiently defined in terms of location, purpose, and scope. A vague easement may be unenforceable or may be interpreted more broadly or narrowly than the parties intended.

Cross-References

Step 8: Property law: jurisdictions/ — real property law by jurisdiction

Step 9: Contract templates: 01-contract-templates.md — general contract principles applicable to property contracts

Step 10: Stamp duty/transfer tax: jurisdictions/ — taxation sections

Step 11: Conveyancing practice: 08-specialized-practice-areas/ — conveyancing and property practice guides

Step 12: Registration systems: foundations/ — Torrens title and recording system comparison

5. Estate Planning Templates

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The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-05 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, CA, NZ

Paper section references: `law-society-nsw-contract-sale-land-2022.pdf`, `oaic-privacy-management-plan-template.pdf`

Overview

This document provides templates for estate planning instruments: last will and testament, enduring/lasting power of attorney, advance care directive (living will), and discretionary trust deed (family trust). Estate planning documents are among the most technically demanding in legal practice because formal validity requirements are strictly enforced — a will that does not comply with execution requirements is invalid regardless of how clearly it expresses the testator's intentions.

Each jurisdiction has distinct requirements for execution, witnessing, capacity, and revocation. The terminology also differs significantly: what is called an "enduring power of attorney" in Australia is a "lasting power of attorney" in the UK and a "durable power of attorney" in the US. These differences are identified throughout.

Critical Warning: Estate planning documents have profound personal and financial consequences. These templates are educational references, not substitutes for professional legal advice. The validity of any estate planning document depends on compliance with the specific requirements of the jurisdiction in which it is intended to operate.

Template 1: Last Will and Testament

Purpose

A will is a legal document by which a person (the testator or testatrix) directs the distribution of their estate after death. It typically appoints an executor (personal representative) to administer the estate, names beneficiaries, provides for guardianship of minor children, and may create testamentary trusts.

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Execution Requirements

Requirement	AU (NSW)	US (General)	UK	CA (ON)	NZ
Governing legislation	Succession Act 2006 (NSW)	Varies by state; UPC adopted in ~18 states	Wills Act 1837	Succession Law Reform Act (RSO 1990, c S.26)	Wills Act 2007
Age	18 years (exceptions for married minors, court order)	18 in most states (some allow 14-16)	18 (exception for military)	18 (exception for military, married)	18
Writing	Required (s 6)	Required	Required (s 9)	Required (s 3)	Required (s 11)
Signature	Testator must sign or direct signing (s 6(1)(a))	Testator must sign	Testator must sign or acknowledge (s 9(a))	Testator must sign (s 4(1))	Testator must sign or direct (s 11(a))
Witnesses	2 witnesses who attest and sign (s 6(1)(b)-(c))	2 witnesses (most states)	2 witnesses (s 9(c)-(d))	2 witnesses (s 4(2))	2 witnesses (s 11(c))
Witness restrictions	Cannot be beneficiary or spouse of beneficiary	Varies; interested witness rule in some states	Gift to witness or spouse is void (s 15)	Interested witness: gift void (s 12)	Gift to witness void (s 13)
Capacity	Must understand nature of will, extent of estate, claims of potential beneficiaries (*Banks v Goodfellow* (1870))	Same common law test	Same common law test	Same common law test	Same common law test

Template Text

LAST WILL AND TESTAMENT

of

[TESTATOR FULL LEGAL NAME]

I, [TESTATOR FULL LEGAL NAME], of [TESTATOR ADDRESS], declare that this is my Last Will and Testament and that I revoke all former wills and codicils made by me.

1. Executor and Trustee

1.1 I appoint [EXECUTOR 1 FULL NAME] of [ADDRESS] as the Executor and Trustee of this Will.

1.2 If [EXECUTOR 1] is unable or unwilling to act, I appoint [EXECUTOR 2 FULL NAME] of [ADDRESS] as the substitute Executor and Trustee.

1.3 I grant my Executor full power to do all things necessary or desirable to administer my estate, including but not limited to the power to: (a) sell, lease, mortgage, or otherwise deal with any asset of my estate; (b) invest funds of my estate in any investment that my Executor considers

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appropriate; (c) carry on any business in which I have an interest at the date of my death for such period as my Executor considers appropriate; (d) compromise, settle, or abandon any claim by or against my estate; and (e) engage and remunerate professional advisors.

2. Funeral Wishes

2.1 I direct that my remains be [BURIAL/CREMATION PREFERENCE]. [NOTE: Funeral directions in a will are expressions of wish only and are not legally binding. They should also be communicated to family members separately, as the will may not be read before the funeral.]

3. Specific Gifts

3.1 I give the following specific gifts:

(a) To [BENEFICIARY 1 FULL NAME] of [ADDRESS], [DESCRIPTION OF SPECIFIC GIFT, e.g., “my engagement ring described as [DESCRIPTION]"];

(b) To [BENEFICIARY 2 FULL NAME] of [ADDRESS], the sum of $[AMOUNT];

(c) To [CHARITY NAME] ([ABN/CHARITY NUMBER]), the sum of $[AMOUNT] [or [PERCENTAGE]% of my estate].

3.2 If any beneficiary named in this clause predeceases me, the gift to that beneficiary lapses and falls into the residue of my estate, unless I have specified an alternative beneficiary.

4. Residuary Estate

4.1 I give the whole of the residue of my estate (being all property of any kind that I own or am entitled to at the date of my death, after payment of my debts, funeral and testamentary expenses, and the specific gifts in clause 3) to the following persons in the following shares:

(a) [PERCENTAGE]% to [RESIDUARY BENEFICIARY 1 FULL NAME]; (b) [PERCENTAGE]% to [RESIDUARY BENEFICIARY 2 FULL NAME].

4.2 If any residuary beneficiary predeceases me, that beneficiary’s share [passes to their children who survive me in equal shares per stirpes / accrues to the surviving residuary beneficiaries in proportion to their respective shares].

5. Guardian of Minor Children [IF APPLICABLE]

5.1 If at the date of my death I have any children under the age of 18 years, I appoint [GUARDIAN FULL NAME] of [ADDRESS] as the guardian of those children.

5.2 If [GUARDIAN] is unable or unwilling to act as guardian, I appoint [SUBSTITUTE GUARDIAN FULL NAME] of [ADDRESS] as substitute guardian.

5.3 [NOTE: Appointment of a guardian is effective only if the testator is the last surviving parent with parental responsibility. The Family Court retains overriding jurisdiction over guardianship in the best interests of the child.]

6. Testamentary Trust for Minor Beneficiaries [IF APPLICABLE]

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6.1 If any beneficiary under this Will is under the age of [VESTING AGE, e.g., “25 years”] at the date of my death, my Executor must hold that beneficiary’s share on trust until the beneficiary attains the Vesting Age (the **“Testamentary Trust”**).

6.2 During the Trust Period, my Executor may in their absolute discretion: (a) apply income and capital of the trust fund for the maintenance, education, advancement, or benefit of the beneficiary; and (b) invest the trust fund in any investment that my Executor considers appropriate.

6.3 If the beneficiary dies before attaining the Vesting Age, the trust fund is to be distributed [to the beneficiary’s children in equal shares / to the residuary beneficiaries / as specified].

7. General Provisions

7.1 **Debts and Expenses.** My Executor must pay my legally enforceable debts, funeral expenses, and testamentary expenses from the residue of my estate before distribution.

7.2 **No Contest Clause.** [OPTIONAL — enforceability varies by jurisdiction:] If any beneficiary under this Will directly or indirectly contests the validity of this Will or any of its provisions, the gift to that beneficiary is revoked and that beneficiary’s share falls into the residue.

7.3 **Survivorship Period.** A beneficiary must survive me by [SURVIVORSHIP PERIOD, e.g., “thirty (30) days”] to be entitled to receive a gift under this Will. If a beneficiary does not survive me by that period, they are deemed to have predeceased me.

7.4 **Definitions.** In this Will, “children” includes biological and legally adopted children. “Per stirpes” means that if a beneficiary predeceases me, that beneficiary’s share passes equally to that beneficiary’s children.

ATTESTATION CLAUSE

Signed by the Testator, [TESTATOR FULL LEGAL NAME], as their Last Will and Testament in the presence of us, both being present at the same time, who at the Testator’s request and in the Testator’s presence and in the presence of each other have signed our names as witnesses:

Testator’s Signature: _____ Date: [DATE]

Witness 1: Signature: _____ Full Name: [WITNESS 1 NAME] Address: [WITNESS 1 ADDRESS] Occupation: [WITNESS 1 OCCUPATION]

Witness 2: Signature: _____ Full Name: [WITNESS 2 NAME] Address: [WITNESS 2 ADDRESS] Occupation: [WITNESS 2 OCCUPATION]

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Revocation

Method	Requirements	Notes
Later will with revocation clause	Properly executed later will stating revocation of all earlier wills	Most common and reliable method
Codicil	Properly executed codicil revoking specific provisions	Used for minor amendments only
Physical destruction	Testator destroys will with intention to revoke	Must be by testator or at testator's direction; risk of disputes about intent
Marriage	Marriage automatically revokes will in most jurisdictions	AU: s 12 Succession Act 2006 (NSW); UK: s 18 Wills Act 1837. Exceptions for wills made in contemplation of marriage
Divorce	Gifts to former spouse revoked in some jurisdictions	AU: s 13 Succession Act 2006 (NSW); varies by state in US

Common Pitfalls

Step 1: **Interested witness.** A gift to a witness (or the witness's spouse/partner) is void in most jurisdictions. Always use independent witnesses.

Step 2: **Failure to address digital assets.** Modern wills should address digital assets including online accounts, cryptocurrency, and digital media libraries.

Step 3: **No residuary clause.** Without a residuary clause, assets not specifically gifted pass on intestacy — potentially to different people than the testator intended.

Step 4: **Assuming joint assets pass under the will.** Assets held as joint tenants pass by survivorship, not under the will. The will only governs assets held as tenants in common or solely.

Template 2: Enduring/Lasting Power of Attorney (Financial)

Purpose

An enduring power of attorney (EPA) (called a lasting power of attorney (LPA) in the UK, or a durable power of attorney in the US) authorizes a nominated person (the attorney or agent) to make financial and legal decisions on behalf of the principal. Unlike an ordinary power of attorney, it continues to operate (or commences operation) if the principal loses mental capacity.

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Terminology by Jurisdiction

Jurisdiction	Instrument Name	Governing Legislation
NSW	Enduring Power of Attorney	Powers of Attorney Act 2003 (NSW)
VIC	Enduring Power of Attorney	Powers of Attorney Act 2014 (Vic)
QLD	Enduring Power of Attorney	Powers of Attorney Act 1998 (Qld)
US	Durable Power of Attorney	Varies by state; Uniform Power of Attorney Act adopted in ~20 states
UK (E&W)	Lasting Power of Attorney (Property and Financial Affairs)	Mental Capacity Act 2005
CA (ON)	Continuing Power of Attorney for Property	Substitute Decisions Act, 1992 (ON)
NZ	Enduring Power of Attorney (property)	Protection of Personal and Property Rights Act 1988

Template Text

ENDURING POWER OF ATTORNEY (Financial / Property Matters)

[NOTE: Most Australian states have prescribed forms that must be used. This template follows the general structure; the prescribed form for the relevant state must be used for a valid instrument.]

1. Principal

I, [PRINCIPAL FULL LEGAL NAME], of [PRINCIPAL ADDRESS], date of birth [DATE OF BIRTH], appoint the following person(s) as my attorney(s).

2. Attorney(s)

I appoint:

(a) [ATTORNEY 1 FULL NAME] of [ADDRESS], date of birth [DATE OF BIRTH]; and

(b) [ATTORNEY 2 FULL NAME] of [ADDRESS], date of birth [DATE OF BIRTH],

[SELECT ONE:]

Step 5: jointly (both must agree on every decision);

Step 6: severally (either may act independently); or

Step 7: jointly and severally (may act together or independently).

3. Substitute Attorney [IF APPLICABLE]

If any of the above attorneys is unable or unwilling to act, I appoint [SUBSTITUTE ATTORNEY FULL NAME] of [ADDRESS] as substitute attorney.

4. Commencement

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This Power of Attorney [SELECT ONE]: (a) commences immediately and continues even if I lose decision-making capacity (**“enduring”**); or (b) commences only when I lose decision-making capacity (**“springing”**).

5. Scope of Authority

My attorney(s) may do on my behalf anything that I could lawfully do by an attorney, including but not limited to: (a) operate my bank accounts; (b) pay my debts and expenses; (c) manage my investments; (d) deal with my real and personal property, including the power to sell, lease, mortgage, or otherwise deal with that property; (e) conduct my business affairs; (f) make gifts on my behalf [OPTIONAL: subject to a limit of $[AMOUNT] per recipient per year / limited to customary gifts at holidays and birthdays]; and (g) engage and pay professional advisors.

6. Conditions and Limitations [IF APPLICABLE]

[SPECIFY ANY CONDITIONS OR LIMITATIONS, e.g.:] (a) My attorney must not sell my residential property at [ADDRESS] without the consent of [SPECIFIED PERSON]. (b) My attorney must not make gifts exceeding $[AMOUNT] per year in total. (c) My attorney must keep records of all transactions and provide an accounting to [SPECIFIED PERSON] annually.

7. Enduring Nature

I intend this Power of Attorney to continue to be effective even if I subsequently lose my decision-making capacity. [NOTE: This clause is essential for the power to be “enduring” in AU, “lasting” in UK, or “durable” in US.]

PRINCIPAL’S SIGNATURE

Signed by the Principal: _____ Name: [PRINCIPAL NAME] Date: [DATE]

WITNESS

[AU: Requirements vary by state. NSW: Prescribed witness must be an eligible witness as defined in the Powers of Attorney Act 2003. UK: LPA must be registered with the Office of the Public Guardian to be valid. US: Requirements vary; notarization commonly required.]

Signature: _____ Name: [WITNESS NAME] Qualification: [QUALIFICATION, e.g., “Australian legal practitioner”]

ATTORNEY’S ACCEPTANCE

I, [ATTORNEY NAME], accept this appointment and undertake to act in the Principal’s best interests and in accordance with this Power of Attorney and applicable law.

Signature: _____ Date: [DATE]

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Registration Requirements

Jurisdiction	Registration Required?	Body	Notes
NSW	No (but registration recommended for land dealings)	NSW LRS	Must be registered to deal with Torrens title land
VIC	No	VCAT (if dispute)	
UK	Yes (mandatory before use)	Office of the Public Guardian	LPA is not valid until registered; registration takes 8-10 weeks
US	No (varies; some states require recording for real property)	County recorder	Recording recommended for real property dealings
ON (CA)	No		
NZ	No		

Template 3: Advance Care Directive / Living Will

Purpose

An advance care directive (also called a living will, advance decision, or advance health directive) records a person's wishes about future medical treatment in the event they lose capacity to make those decisions. It may include refusal of specific treatments, preferences for palliative care, and appointment of a substitute decision-maker for health matters.

Terminology by Jurisdiction

Jurisdiction	Instrument Name	Governing Legislation
NSW	Advance Care Directive	Not yet formally legislated in NSW; common law validity recognized
QLD	Advance Health Directive	Powers of Attorney Act 1998 (Qld) Part 3
VIC	Advance Care Directive	Medical Treatment Planning and Decisions Act 2016 (Vic)
SA	Advance Care Directive	Advance Care Directives Act 2013 (SA)
US	Advance Directive / Living Will	Varies by state; Patient Self-Determination Act 1990 (federal)
UK	Advance Decision to Refuse Treatment	Mental Capacity Act 2005 ss 24-26
CA (ON)	Power of Attorney for Personal Care	Health Care Consent Act, 1996 (ON)
NZ	Advance Directive	Common law; Code of Health and Disability Services Consumers' Rights

Template Text

ADVANCE CARE DIRECTIVE

1. Personal Details

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Full Name: [FULL LEGAL NAME] Date of Birth: [DATE OF BIRTH] Address: [ADDRESS]

2. Statement of Values

I make this Advance Care Directive to record my wishes and preferences about my future health care if I become unable to make or communicate my own decisions. I have the following values and beliefs that should guide decision-making about my care:

[PERSONAL STATEMENT OF VALUES, e.g., “I value quality of life over length of life. I do not wish to be kept alive by artificial means if there is no reasonable prospect of meaningful recovery. I wish to be kept comfortable and free from pain.”]

3. Substitute Decision-Maker [WHERE PERMITTED BY LEGISLATION]

I appoint [SUBSTITUTE DECISION-MAKER NAME] of [ADDRESS], relationship: [RELATIONSHIP], as my substitute decision-maker for health and personal care decisions.

If [SUBSTITUTE DECISION-MAKER] is unable or unwilling to act, I appoint [ALTERNATIVE NAME] of [ADDRESS].

4. Treatment Directions

If I am in a condition where I am unable to make or communicate decisions about my medical treatment, I direct as follows:

4.1 Terminal Illness. If I have a terminal illness with no reasonable prospect of recovery: (a) I [consent to / refuse] cardiopulmonary resuscitation (CPR); (b) I [consent to / refuse] mechanical ventilation (life support); (c) I [consent to / refuse] artificial nutrition and hydration (tube feeding); (d) I [consent to] palliative care to maintain comfort and dignity; and (e) I [consent to] medication for the relief of pain even if it may hasten death.

4.2 Permanent Unconsciousness. If I am in a persistent vegetative state or permanent coma with no reasonable prospect of regaining consciousness: (a) I [consent to / refuse] all life-sustaining treatment; and (b) I [consent to] comfort care and pain management only.

4.3 Advanced Dementia. If I have advanced dementia and am unable to recognize family members, communicate meaningfully, or perform basic self-care: [SPECIFY TREATMENT PREFERENCES]

5. Organ and Tissue Donation

I [wish / do not wish] to donate my organs and tissues for transplantation upon my death. [IF WISH:] I authorize the donation of [all suitable organs and tissues / the following specific organs: [SPECIFY]].

6. Revocation

I may revoke or amend this Advance Care Directive at any time while I have capacity to do so, by [making a new directive / destroying this document / notifying my substitute decision-maker in writing].

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PRINCIPAL'S SIGNATURE

Signed: _____ Name: [FULL NAME] Date: [DATE]

WITNESSES [Requirements vary by jurisdiction]

Witness 1 Signature: _____ Name: [NAME] [Qualification if required, e.g., "Medical practitioner" in some states]

Witness 2 Signature: _____ Name: [NAME]

Key Legal Issues

Issue	Notes
Binding effect	In the UK, an advance decision to refuse life-sustaining treatment must be in writing, signed, and witnessed (MCA 2005 s 25(5)-(6)). In AU, varies by state. In US, varies by state.
Capacity	The principal must have capacity at the time of making the directive. The *Banks v Goodfellow* principles apply by analogy.
Specificity	The directive must be sufficiently specific about the treatment being refused and the circumstances in which the refusal applies. Vague directives may not be binding.
Medical override	In most jurisdictions, a healthcare provider may decline to follow a directive if they believe the principal did not have capacity, the circumstances have changed materially, or the directive is ambiguous.

Template 4: Discretionary Trust Deed (Family Trust)

Purpose

A discretionary trust (family trust) is a trust structure commonly used for asset protection, income splitting, and estate planning. The trustee has discretion to distribute income and capital among a defined class of beneficiaries. In Australia, family trusts are widely used for tax planning under the Income Tax Assessment Act 1936 and 1997. The trust deed is the constituting document that creates the trust and defines its terms.

Template Text (Summary)

DEED OF TRUST [TRUST NAME] FAMILY TRUST

Date: [DATE]

Settlor: [SETTLOR NAME] of [ADDRESS]

Trustee: [TRUSTEE NAME — individual or corporate trustee] of [ADDRESS]

Settlement Sum: $[AMOUNT, typically $10-$100]

1. Establishment of Trust

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1.1 The Settlor settles the Settlement Sum upon the Trustee to hold on the trusts declared in this Deed, and the Trustee accepts the trusts of this Deed.

1.2 The trust established by this Deed is known as the [TRUST NAME] Family Trust.

2. Definitions

“Beneficiary” means any person or entity within the class of beneficiaries defined in Schedule 1, including: (a) [PRIMARY BENEFICIARY NAME] (the **“Primary Beneficiary”**); (b) the spouse, children, grandchildren, and remoter issue of the Primary Beneficiary; (c) the parents and siblings of the Primary Beneficiary; (d) any company, trust, or entity controlled by a person referred to in (a)-(c); (e) any charity; and (f) any person or entity nominated by the Trustee with the consent of the [Appointor/Guardian].

“Appointor” means [APPOINTOR NAME] of [ADDRESS], or their successor appointed in accordance with this Deed.

“Trust Fund” means the Settlement Sum and all property from time to time held by the Trustee on the trusts of this Deed.

“Vesting Date” means [DATE — typically 80 years from establishment, being within the perpetuity period] or such earlier date as the Trustee determines with the consent of the Appointor.

3. Trustee’s Discretions

3.1 **Income.** In each financial year, the Trustee may in its absolute discretion: (a) distribute the whole or any part of the net income of the Trust Fund among such of the Beneficiaries in such proportions as the Trustee determines; or (b) accumulate the whole or any part of the net income.

3.2 **Capital.** The Trustee may in its absolute discretion distribute the whole or any part of the capital of the Trust Fund to or for the benefit of any one or more of the Beneficiaries.

3.3 No Beneficiary has any entitlement to income or capital unless and until the Trustee exercises its discretion in favor of that Beneficiary.

4. Trustee’s Powers

4.1 The Trustee has all the powers of a natural person who is the absolute and beneficial owner of the Trust Fund, including the power to: (a) invest in any investment, whether or not authorized by law for the investment of trust funds; (b) borrow money and give security over the Trust Fund; (c) carry on or participate in any business; (d) acquire, hold, lease, mortgage, sell, or otherwise deal with real and personal property; (e) lend money to Beneficiaries on such terms as the Trustee considers appropriate; (f) establish and contribute to superannuation funds for Beneficiaries; and (g) do all things incidental to the administration of the Trust.

5. Appointor

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5.1 The Appointor has the power to: (a) remove the Trustee and appoint a new Trustee; and (b) consent to the exercise of certain powers specified in this Deed.

5.2 The Appointor may appoint a successor Appointor by deed. If the Appointor dies without appointing a successor, the role passes to [SUCCESSION PROVISION, e.g., “the Primary Beneficiary, or if the Primary Beneficiary is unable or unwilling to act, the eldest adult child of the Primary Beneficiary”].

6. Trustee’s Duties

6.1 The Trustee must: (a) act honestly and in good faith in the best interests of the Beneficiaries; (b) exercise reasonable care, skill, and diligence; (c) keep proper accounts and records; (d) provide accounts to any Beneficiary on reasonable request; and (e) comply with all applicable taxation and regulatory requirements.

7. Vesting

7.1 On the Vesting Date, the Trustee must distribute the Trust Fund among the Beneficiaries in such proportions as the Trustee determines. If the Trustee does not make a determination, the Trust Fund is distributed equally among the Beneficiaries then living.

8. Governing Law

8.1 This Deed and the trusts declared in it are governed by the laws of [GOVERNING JURISDICTION].

EXECUTION

Settlor: _____ Name: [SETTLOR NAME] Date: [DATE]

Trustee: _____ Name: [TRUSTEE NAME] Date: [DATE]

Key Issues

Issue	Notes
Perpetuity period	AU: 80 years (varies by state). UK: 125 years (Perpetuities and Accumulations Act 2009). US: Varies; some states have abolished the rule against perpetuities.
Taxation	AU: Trust income distributed to beneficiaries is taxed in their hands. Undistributed income taxed at highest marginal rate (s 99A ITAA 1936). Family trust election may be required for losses.
Stamp duty	Some states impose stamp duty on the creation or transfer of trust property. Varies by jurisdiction.
Trustee liability	The trustee is personally liable for trust debts, with a right of indemnity from the trust fund. A corporate trustee limits personal exposure of the individuals involved.

Cross-References

Step 8: Succession law: jurisdictions/ — intestacy rules, family provision, probate

Step 9: Taxation: jurisdictions/ — trust taxation, capital gains tax, estate/inheritance tax

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Step 10: Elder law: 08-specialized-practice-areas/ — capacity, guardianship, elder abuse

Step 11: Ethics in estate planning: 05-legal-ethics-and-professional-conduct/ — duties when taking instructions from elderly or vulnerable clients

Step 12: Corporate templates: 03-corporate-templates.md — corporate trustee constitution

6. Regulatory Compliance Templates

The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-06 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, EU

Paper section references: `oaic-data-breach-preparation-response.pdf`, `oaic-privacy-impact-assessment-guide.pdf`, `oaic-privacy-management-plan-template.pdf`, `accc-compliance-enforcement-policy-2025-26.pdf`

Overview

This document provides templates for regulatory compliance documents: privacy policy, data breach notification, freedom of information request, whistleblower report, and modern slavery statement. Regulatory compliance is among the fastest-evolving areas of legal practice, driven by the expansion of data protection frameworks (GDPR, Privacy Act 1988, CCPA), whistleblower protection legislation, and human rights due diligence requirements.

Unlike transactional templates where the parties negotiate terms, regulatory compliance templates must satisfy mandatory statutory content requirements. The template is not a starting point for negotiation — it is a minimum specification that must be met to achieve compliance. Omitting a required element may constitute a breach of the applicable legislation and attract penalties.

Template 1: Privacy Policy

Purpose

A privacy policy is a public-facing document that informs individuals about how an organization collects, uses, stores, and discloses personal information. It is required by law in most jurisdictions where an organization handles personal information. The content requirements differ between frameworks but share a common structure: what is collected, why, how it is used, who it is shared with, how it is protected, and what rights individuals have.

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Statutory Requirements by Framework

Requirement	Privacy Act 1988 (AU) — APP 1.4	GDPR (EU) — Arts 13-14	CCPA/CPRA (US-CA)	Privacy Act 2020 (NZ)
Identity of organization	Required	Required (data controller)	Required	Required
Types of information collected	Required	Required (categories)	Required (categories)	Required
Purpose of collection	Required	Required (purposes + legal basis)	Required	Required
How information is collected	Required	Required	Not explicitly required	Required
Third-party disclosure	Required	Required (recipients/categories)	Required (categories sold/shared)	Required
Overseas transfer	Required (APP 8)	Required (Art 13(1)(f))	Not specifically	Required (IPP 12)
Access and correction rights	Required	Required (right of access, rectification, erasure, restriction, portability, objection)	Required (right to know, delete, opt-out, non-discrimination)	Required
Complaint process	Required	Required (right to lodge complaint with supervisory authority)	Required	Required
Data retention	Required	Required	Required (retention period or criteria)	Required
Automated decision-making	Not specifically required	Required if applicable (Art 22)	Required for profiling (CPRA)	Not specifically required

Template Text

PRIVACY POLICY

[ORGANIZATION NAME]

Last Updated: [DATE]

1. About This Policy

This Privacy Policy explains how [ORGANIZATION FULL LEGAL NAME] (**"we"**, **"us"**, **"our"**) [ABN/ACN/Company Number: [NUMBER]] collects, uses, discloses, and protects personal information. We are committed to protecting your privacy in accordance with the [Privacy Act 1988 (Cth) and the Australian Privacy Principles (APPs) / General Data Protection Regulation (EU) 2016/679 (GDPR) / California Consumer Privacy Act as amended by the California Privacy Rights Act (CCPA/CPRA) / applicable privacy legislation].

[GDPR ADDITION: For the purposes of the GDPR, we are the data controller. Our representative in the EU is [EU REPRESENTATIVE NAME AND ADDRESS]. Our Data Protection Officer can be contacted at [DPO EMAIL].]

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2. Information We Collect

We collect the following categories of personal information:

Category	Examples	Source
Identity information	Name, date of birth, gender	Directly from you
Contact information	Email address, phone number, postal address	Directly from you
Financial information	Bank account details, payment card information, billing address	Directly from you; payment processors
Transaction information	Products/services purchased, transaction dates and amounts	Generated from your transactions
Technical information	IP address, browser type, device information, cookies	Automatically collected
Usage information	Pages visited, features used, time spent on pages	Automatically collected
Communication information	Correspondence with us, survey responses, feedback	Directly from you
[ADDITIONAL CATEGORIES AS APPLICABLE]	[EXAMPLES]	[SOURCE]

We do not collect sensitive information (including health information, racial or ethnic origin, political opinions, religious beliefs, sexual orientation, or biometric data) unless you have provided express consent or collection is required or authorized by law.

3. How We Collect Information

We collect personal information: (a) directly from you, when you provide it to us (e.g., filling in forms, registering an account, contacting us, purchasing products or services); (b) automatically, when you interact with our website or services (through cookies, analytics tools, and server logs); (c) from third parties, including [IDENTIFY THIRD-PARTY SOURCES, e.g., “our business partners, marketing platforms, credit reporting agencies, publicly available sources”].

4. Purposes of Collection and Use

We collect and use your personal information for the following purposes:

(a) to provide our products and services to you; (b) to process payments and manage your account; (c) to communicate with you about your account, our products, and our services; (d) to improve our products, services, and website; (e) to comply with our legal obligations; (f) to protect our legitimate interests and enforce our terms; (g) [MARKETING:] to send you marketing communications, where you have consented or where we have a legitimate interest and you have not opted out; and (h) [ADDITIONAL PURPOSES].

[GDPR ADDITION: The legal bases for our processing are: (a) performance of a contract (Art 6(1)(b)); (b) compliance with legal obligations (Art 6(1)(c)); (c) legitimate interests (Art 6(1)(f)), being [SPECIFY LEGITIMATE INTERESTS]; and (d) consent (Art 6(1)(a)), where applicable.]

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5. Disclosure of Information

We may disclose your personal information to:

(a) our employees, contractors, and service providers who need access to perform their functions; (b) our professional advisors (lawyers, accountants, auditors); (c) payment processors and financial institutions; (d) government agencies, regulators, and law enforcement where required by law; (e) [ADDITIONAL RECIPIENTS]; and (f) any party to whom you have consented to disclosure.

[CCPA ADDITION: In the preceding 12 months, we have [sold / not sold] personal information. We have [shared / not shared] personal information for cross-context behavioral advertising. [IF SOLD/SHARED: The categories sold/shared were [CATEGORIES] to [CATEGORIES OF RECIPIENTS].]]

6. Overseas Transfers

[AU: We may disclose your personal information to recipients located in [COUNTRIES]. Before doing so, we take reasonable steps to ensure the overseas recipient complies with the APPs or is subject to a substantially similar privacy regime (APP 8).]

[GDPR: We may transfer your personal data outside the European Economic Area to [COUNTRIES]. Where we do so, we ensure appropriate safeguards are in place, including [standard contractual clauses approved by the European Commission / adequacy decisions / binding corporate rules].]

7. Data Retention

We retain your personal information only for as long as necessary to fulfill the purposes for which it was collected, including to satisfy legal, accounting, or reporting requirements. [SPECIFY RETENTION PERIODS OR CRITERIA, e.g., “We generally retain personal information for [NUMBER] years after the end of our relationship with you, or as required by applicable law.”]

8. Security

We take reasonable steps to protect your personal information from misuse, interference, loss, unauthorized access, modification, and disclosure. Our security measures include [DESCRIBE MEASURES, e.g., “encryption of data in transit and at rest, access controls, regular security assessments, and staff training”].

9. Your Rights

You have the following rights in relation to your personal information:

Right	AU (APPs)	GDPR	CCPA/CPRA
Access	APP 12	Art 15	Right to Know
Correction/Rectification	APP 13	Art 16	Right to Correct
Erasure/Deletion	Limited	Art 17	Right to Delete

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Right	AU (APPs)	GDPR	CCPA/CPRA
Restriction of processing	N/A	Art 18	N/A
Data portability	N/A	Art 20	N/A
Objection to processing	N/A	Art 21	N/A
Opt-out of sale/sharing	N/A	N/A	Right to Opt-Out
Non-discrimination	N/A	N/A	Right to Non-Discrimination

To exercise any of these rights, contact us at [CONTACT DETAILS].

10. Cookies

Our website uses cookies and similar technologies. [DESCRIBE COOKIE USE AND REFER TO SEPARATE COOKIE POLICY IF APPLICABLE.]

[GDPR: We obtain your consent before placing non-essential cookies, in accordance with the ePrivacy Directive (2002/58/EC).]

11. Complaints

If you believe we have breached the APPs or applicable privacy legislation, you may lodge a complaint with us at [CONTACT DETAILS]. We will investigate and respond within [TIMEFRAME, e.g., “thirty (30) days”].

If you are not satisfied with our response, you may complain to:

- Step 1: [AU:] The Office of the Australian Information Commissioner (OAIC): www.oaic.gov.au
- Step 2: [EU:] Your local supervisory authority under the GDPR
- Step 3: [UK:] The Information Commissioner’s Office (ICO): www.ico.org.uk
- Step 4: [US-CA:] The California Attorney General: oag.ca.gov

12. Changes to This Policy

We may update this Privacy Policy from time to time. We will notify you of material changes by [METHOD, e.g., “posting the updated policy on our website and updating the ‘Last Updated’ date”].

13. Contact Us

[ORGANIZATION NAME] [ADDRESS] Email: [PRIVACY EMAIL] Phone: [PHONE]

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Template 2: Data Breach Notification

Purpose

A data breach notification is a formal report made to the relevant regulatory authority (and affected individuals) when personal information is subject to unauthorized access, disclosure, loss, or destruction. Mandatory data breach notification is required under the Privacy Act 1988 (AU — Notifiable Data Breaches scheme, Part IIIC), the GDPR (Arts 33-34), and various US state breach notification laws.

Notification Timeframes

Jurisdiction	Regulator Notification	Individual Notification
AU	As soon as practicable after becoming aware (s 26WH)	As soon as practicable (s 26WK)
EU (GDPR)	72 hours (Art 33(1))	Without undue delay (Art 34(1))
UK	72 hours (UK GDPR Art 33(1))	Without undue delay
US (CA)	Without unreasonable delay, no later than 45 days	Without unreasonable delay (Cal. Civ. Code s 1798.82)
CA (Federal)	As soon as feasible (PIPEDA s 10.1(1))	As soon as feasible
NZ	As soon as practicable after becoming aware (Privacy Act 2020 s 114)	As soon as practicable (s 115)

Template Text — Notification to OAIC (AU)

NOTIFIABLE DATA BREACH STATEMENT Submitted to the Office of the Australian Information Commissioner

Pursuant to section 26WK of the Privacy Act 1988 (Cth)

1. Organization Details

Organization Name: [ORGANIZATION NAME] ABN/ACN: [NUMBER] Contact Person: [NAME AND TITLE] Contact Email: [EMAIL] Contact Phone: [PHONE]

2. Description of the Breach

2.1 **Nature of the breach:** [DESCRIPTION, e.g., “Unauthorized access to a database containing customer personal information due to a compromised employee credential.”]

2.2 **Date the breach occurred:** [DATE] (or estimated date if exact date unknown)

2.3 **Date the breach was discovered:** [DATE]

2.4 **How the breach was discovered:** [DESCRIPTION]

3. Information Involved

3.1 **Types of personal information involved:**

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Step 5: [ ] Names

Step 6: [ ] Email addresses

Step 7: [ ] Phone numbers

Step 8: [ ] Residential addresses

Step 9: [ ] Dates of birth

Step 10: [ ] Financial information (bank accounts, credit card numbers)

Step 11: [ ] Tax file numbers / Social Security numbers

Step 12: [ ] Health information

Step 13: [ ] Identity document numbers (passport, driver license)

Step 14: [ ] Other: [SPECIFY]

3.2 **Number of individuals affected:** [NUMBER or ESTIMATED RANGE]

4. Assessment of Serious Harm

4.1 We have assessed this breach as an “eligible data breach” under section 26WE of the Privacy Act 1988 because [EXPLAIN WHY THE BREACH IS LIKELY TO RESULT IN SERIOUS HARM TO ANY OF THE INDIVIDUALS TO WHOM THE INFORMATION RELATES].

4.2 The following factors were considered in this assessment (per s 26WG): (a) the kind(s) and sensitivity of the information; (b) whether the information is protected by security measures and the likelihood that those measures could be overcome; (c) the persons who have obtained or could obtain the information; (d) the nature of the harm that could result; and (e) any other relevant matters.

5. Remedial Action

5.1 We have taken the following steps to contain the breach and mitigate harm: (a) [ACTION 1, e.g., “Disabled the compromised credentials and reset all affected passwords.”] (b) [ACTION 2, e.g., “Engaged a cybersecurity firm to investigate the breach and secure systems.”] (c) [ACTION 3, e.g., “Notified affected individuals by email on [DATE].”] (d) [ACTION 4]

6. Notification to Individuals

6.1 We have notified [NUMBER] affected individuals by [METHOD] on [DATE].

6.2 We have recommended the following steps to individuals: (a) [RECOMMENDATION 1, e.g., “Change passwords for any account using the same or similar credentials.”] (b) [RECOMMENDATION 2, e.g., “Monitor financial accounts for unauthorized transactions.”] (c) [RECOMMENDATION 3, e.g., “Contact IDCARE (1800 595 160) for identity protection support.”]

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Template 3: Freedom of Information Request

Purpose

A freedom of information (FOI) request is a formal request for access to government-held documents. The right of access to government information is established by the Freedom of Information Act 1982 (Cth) (AU), the Freedom of Information Act 2000 (UK), the Freedom of Information Act 5 USC s 552 (US — FOIA), and equivalent legislation in other jurisdictions.

Template Text

FREEDOM OF INFORMATION REQUEST

To: [AGENCY FOI OFFICER] [AGENCY NAME] [AGENCY ADDRESS]

From: [APPLICANT NAME] [APPLICANT ADDRESS] [APPLICANT EMAIL] [APPLICANT PHONE]

Date: [DATE]

Dear FOI Officer,

I make this request under the [Freedom of Information Act 1982 (Cth) / Freedom of Information Act 2000 (UK) / Freedom of Information Act 5 USC s 552 (US)] for access to the following documents:

Documents Requested:

Step 15: [DESCRIPTION OF DOCUMENTS, e.g., “All documents, including correspondence, memoranda, briefing papers, and file notes, relating to [SUBJECT MATTER] created or received by [AGENCY/DEPARTMENT] between [START DATE] and [END DATE].”]

Step 16: [ADDITIONAL CATEGORIES OF DOCUMENTS.]

Form of Access:

I request access in the form of [copies of the documents / inspection of the documents / electronic copies in [FORMAT]].

Application Fee:

[AU: I enclose the application fee of $[AMOUNT — currently nil for personal information requests; fees may apply for non-personal requests under some jurisdictions].]

[UK: No application fee is payable under the FOIA 2000.]

[US: I am willing to pay fees up to $[AMOUNT]. If the fees will exceed this amount, please contact me before processing the request. I request a fee waiver on the basis that disclosure is in the public interest because [GROUNDS FOR WAIVER].]

Processing Time:

[AU: I understand the agency must process this request within 30 days (s 15(5)(b) FOI Act 1982 (Cth)).]

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[UK: I understand the authority must respond within 20 working days (s 10 FOIA 2000).]

[US: I understand the agency must respond within 20 business days (5 USC s 552(a)(6)(A)).]

Yours faithfully,

[APPLICANT NAME] [APPLICANT SIGNATURE]

Template 4: Whistleblower Report

Purpose

A whistleblower report is a disclosure of suspected wrongdoing made to an eligible recipient under whistleblower protection legislation. In Australia, the Corporations Act 2001 Part 9.4AAA and the Taxation Administration Act 1953 Part IVA provide protections for whistleblowers who report breaches of corporation or tax law. The Public Interest Disclosure Act 2013 (Cth) covers disclosures about public sector wrongdoing. Equivalent protections exist in other jurisdictions.

Template Text

CONFIDENTIAL — WHISTLEBLOWER DISCLOSURE

To: [ELIGIBLE RECIPIENT, e.g., “Whistleblower Protection Officer” / “External Auditor” / “ASIC” / “ATO” / “Board Audit Committee Chair”]

Date: [DATE]

1. Discloser Information [NOTE: Anonymous disclosures are protected under Australian law (s 1317AAA Corporations Act 2001)]

Name: [NAME — or “Anonymous”] Position: [POSITION — if comfortable disclosing] Contact: [CONTACT DETAILS — if comfortable disclosing]

2. Nature of Disclosure

I have reasonable grounds to suspect that [ENTITY NAME] or persons associated with it have engaged in conduct that constitutes:

Step 17: [ ] A contravention of the Corporations Act 2001 or ASIC Act 2001

Step 18: [ ] A contravention of a Commonwealth law punishable by imprisonment of 12 months or more

Step 19: [ ] Conduct that represents a danger to the public or the financial system

Step 20: [ ] A contravention of taxation law

Step 21: [ ] Other misconduct or an improper state of affairs: [SPECIFY]

3. Description of Conduct

[DETAILED FACTUAL DESCRIPTION OF THE SUSPECTED WRONGDOING, INCLUDING:

Step 22: What happened

Step 23: When it happened (dates, frequency)

Step 24: Who was involved

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Step 25: Where it occurred

Step 26: How you became aware of it

Step 27: Any documents or evidence supporting the disclosure]

4. Supporting Evidence

I am able to provide the following evidence in support of this disclosure: (a) [DESCRIPTION OF EVIDENCE, e.g., “Emails between [PERSONS] dated [DATES]"] (b) [FURTHER EVIDENCE]

5. Acknowledgment of Protections

I understand that as a whistleblower I am entitled to protections under [the Corporations Act 2001 Part 9.4AAA / applicable legislation], including:

Step 28: Protection of my identity (the recipient must not disclose my identity without my consent or as required by law)

Step 29: Protection from detrimental conduct (victimization, dismissal, discrimination)

Step 30: Protection from civil, criminal, and administrative liability for making the disclosure

Step 31: Compensation and remedies if I suffer detriment as a result of the disclosure

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Template 5: Modern Slavery Statement

Purpose

A modern slavery statement is a public disclosure required of large organizations under the Modern Slavery Act 2018 (Cth) (AU — entities with consolidated revenue of $100 million or more) and the Modern Slavery Act 2015 (UK — entities with turnover of 36 million pounds or more). The statement must describe the organization’s structure, operations, and supply chains, and the actions taken to assess and address modern slavery risks.

Mandatory Content

Requirement	AU (Modern Slavery Act 2018 s 16)	UK (Modern Slavery Act 2015 s 54)
Organization’s structure, operations, supply chains	Required	Required
Risks of modern slavery in operations and supply chains	Required	Required
Actions taken to assess and address risks	Required	Required
How effectiveness is assessed	Required	Required
Process of consultation with owned/controlled entities	Required	Not specifically required
Approval by principal governing body	Required	Required (board approval + director signature)
Other relevant information	Required	Optional

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Template Text (Summary)

MODERN SLAVERY STATEMENT [FINANCIAL YEAR]

[ORGANIZATION NAME]

This statement is made pursuant to [section 13 of the Modern Slavery Act 2018 (Cth) / section 54 of the Modern Slavery Act 2015 (UK)] for the financial year ending [DATE].

1. About [ORGANIZATION NAME]

[DESCRIPTION OF ORGANIZATIONAL STRUCTURE, OPERATIONS, AND SUPPLY CHAINS. Include: legal structure, countries of operation, number of employees, nature of business, key supply chain categories.]

2. Modern Slavery Risks

We have identified the following potential modern slavery risks in our operations and supply chains:

(a) [RISK 1, e.g., “Use of migrant labor in [INDUSTRY/COUNTRY] supply chains with limited visibility beyond tier-one suppliers.”] (b) [RISK 2] (c) [RISK 3]

3. Actions Taken

We have taken the following actions to assess and address modern slavery risks:

(a) [ACTION 1, e.g., “Implemented a supplier code of conduct requiring all direct suppliers to comply with applicable labor laws and prohibiting the use of forced, bonded, or child labor.”] (b) [ACTION 2, e.g., “Conducted risk assessments of our supply chain using [METHODOLOGY/TOOL].”] (c) [ACTION 3, e.g., “Provided training to [NUMBER] employees in procurement, HR, and management on identifying modern slavery indicators.”] (d) [ACTION 4, e.g., “Established a grievance mechanism for workers in our supply chain to report concerns.”]

4. Assessing Effectiveness

We assess the effectiveness of our actions through: (a) [METRIC 1, e.g., “Regular supplier audits, including unannounced site visits.”] (b) [METRIC 2, e.g., “Tracking the number of modern slavery risks identified and remediated.”] (c) [METRIC 3, e.g., “Employee training completion rates.”]

5. Consultation

[AU: We consulted with the following owned or controlled entities in preparing this statement: [LIST ENTITIES AND DESCRIBE CONSULTATION PROCESS].]

6. Approval

This statement was approved by the Board of Directors of [ORGANIZATION NAME] on [DATE].

Signed: _____ [DIRECTOR/CEO NAME] [TITLE] Date: [DATE]

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Cross-References

Step 32: Privacy law: jurisdictions/ — privacy and data protection legislation by jurisdiction

Step 33: Corporate governance: 03-corporate-templates.md — board resolutions approving compliance documents

Step 34: Employment law: jurisdictions/ — whistleblower protections, modern slavery obligations

Step 35: Ethics: 05-legal-ethics-and-professional-conduct/ — professional duties in regulatory compliance

Step 36: Legal technology: 10-legal-technology-and-innovation/ — data security, breach response tools

7. Correspondence Templates

The Codex — Business, Finance & Law Division **Section:** AF-PRAC-03-07 **Document Type:** Template Collection **Jurisdiction Coverage:** AU, US, UK, CA, NZ

Paper section references: `accc-compliance-enforcement-policy-2025-26.pdf`, `accc-guide-competition-consumer-law.pdf`

Overview

This document provides templates for professional legal correspondence: letter of demand, cease and desist letter, engagement letter (retainer), costs agreement/disclosure, without prejudice settlement offer, and notice of termination of retainer. Legal correspondence carries legal effect — a letter of demand may start limitation periods running, a without prejudice letter may be inadmissible in evidence, and an engagement letter creates a contractual relationship with binding obligations.

The professional obligations governing legal correspondence are set out in the applicable solicitors' conduct rules. In Australia, the Australian Solicitors' Conduct Rules 2015 (ASCR) govern. In the US, the ABA Model Rules of Professional Conduct apply (adopted with variations in each state). In the UK, the SRA Code of Conduct for Solicitors applies.

Template 1: Letter of Demand

Purpose

A letter of demand is a formal written request for payment or performance, typically sent before commencing legal proceedings. It serves several purposes: it may be required by pre-action protocols (such as the Practice Note CM 5 in the Federal Court of Australia, or the Pre-Action Protocol for Debt Claims in England and Wales); it demonstrates that the creditor has taken reasonable steps to resolve the dispute; and it may trigger the running of interest or costs consequences.

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Legal Effect

Effect	Detail
Pre-action requirement	Many courts require evidence of a demand before proceedings can commence
Costs consequences	Failure to respond reasonably to a demand may result in indemnity costs
Interest	Some statutes allow interest from the date of demand
Limitation	Does not restart limitation period, but may be relevant to discoverability
Evidence	Generally admissible as evidence of the claim and the defendant's failure to comply

Template Text

[FIRM LETTERHEAD]

[DATE]

BY [METHOD: Registered Post / Email / Hand Delivery]

[RECIPIENT NAME] [RECIPIENT ADDRESS]

Dear [RECIPIENT NAME],

Re: [BRIEF DESCRIPTION OF MATTER] Our Ref: [FILE REFERENCE]

We act for [CLIENT NAME] (**"our client"**) in relation to [BRIEF DESCRIPTION OF THE RELATIONSHIP OR TRANSACTION, e.g., "a services agreement dated [DATE] between our client and you/your company"].

Background

[SET OUT THE FACTUAL BACKGROUND CONCISELY, e.g.:]

Step 1: On or about [DATE], our client and [RECIPIENT/COMPANY] entered into [AGREEMENT TYPE] pursuant to which [RECIPIENT] agreed to [OBLIGATION].

Step 2: [RECIPIENT] has failed to [SPECIFIC BREACH, e.g., "pay the invoice dated [DATE] in the amount of $[AMOUNT] which was due on [DUE DATE]"].

Step 3: Despite [PRIOR REQUESTS/REMINDERS, e.g., "our client's reminder dated [DATE] and telephone call on [DATE]"], the amount remains outstanding.

Demand

We are instructed to demand, and hereby demand, that you:

Step 4: [SPECIFIC DEMAND, e.g., "Pay the sum of $[AMOUNT] (being $[PRINCIPAL] in principal, plus $[INTEREST] in interest calculated at [RATE]% per annum from [DATE] to the date of this letter) within [TIMEFRAME, e.g., 'fourteen (14) days'] of the date of this letter."]

Step 5: [ADDITIONAL DEMANDS IF APPLICABLE, e.g., "Deliver to our client the [PROPERTY/DOCUMENTS] as required by clause [X] of the Agreement."]

Consequences of Non-Compliance

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If you fail to comply with this demand within the time specified, our client will commence legal proceedings against you without further notice. In those proceedings, our client will seek:

(a) the amounts demanded above; (b) interest pursuant to [APPLICABLE INTEREST PROVISION, e.g., “section 100 of the Civil Procedure Act 2005 (NSW)" / “the Late Payment of Commercial Debts (Interest) Act 1998 (UK)"]; (c) legal costs on an indemnity basis; and (d) any other relief the court considers appropriate.

We draw your attention to the [PRE-ACTION PROTOCOL, e.g., “overriding purpose provisions in section 56 of the Civil Procedure Act 2005 (NSW)" / “Pre-Action Protocol for Debt Claims under the Civil Procedure Rules (UK)"] and note that this letter is relevant to the court’s assessment of costs.

Response

Please direct all correspondence to the undersigned. We request that you do not contact our client directly in relation to this matter.

If you dispute the claim, please provide full particulars of your dispute in writing within [TIMEFRAME] so that we may consider whether the matter can be resolved without proceedings.

Yours faithfully,

[SOLICITOR NAME] [FIRM NAME] [DIRECT PHONE] [EMAIL]

Common Pitfalls

Step 6: **Demanding more than is owed.** A letter that demands a grossly inflated amount may be considered misleading conduct. Ensure the amount is accurate and supported by documentation.

Step 7: **Threatening criminal proceedings to gain a civil advantage.** This may constitute an offense in some jurisdictions and is an ethical breach under conduct rules (ASCR r 34.1.1).

Step 8: **No time for response.** The demand should allow a reasonable time for response — typically 14 to 28 days. An unreasonably short deadline may not satisfy pre-action protocol requirements.

Template 2: Cease and Desist Letter

Purpose

A cease and desist letter demands that the recipient stop engaging in specified conduct that infringes the sender’s rights. It is commonly used in intellectual property disputes (trademark infringement, copyright infringement, patent infringement), defamation matters, breaches of contract (particularly non-compete or non-solicitation clauses), and harassment situations.

Template Text

[FIRM LETTERHEAD]

[DATE]

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BY [METHOD]

[RECIPIENT NAME] [RECIPIENT ADDRESS]

Dear [RECIPIENT NAME],

Re: Cease and Desist — [BRIEF DESCRIPTION, e.g., “Infringement of [CLIENT NAME]‘s Trademark”] Our Ref: [FILE REFERENCE]

We act for [CLIENT NAME] in relation to [DESCRIPTION OF RIGHTS, e.g., “the registered trademark '[TRADEMARK]' (Registration No. [NUMBER]) in Class [CLASS]"].

Infringing Conduct

It has come to our client’s attention that you are [DESCRIPTION OF INFRINGING CONDUCT, e.g., “using the mark '[INFRINGING MARK]' in connection with [GOODS/SERVICES] on your website at [URL] and in marketing materials distributed in [LOCATION]"].

This conduct constitutes [LEGAL BASIS, e.g.]: (a) infringement of our client’s registered trademark contrary to [section 120 of the Trade Marks Act 1995 (Cth) / 15 USC s 1114 (Lanham Act) / section 10 of the Trade Marks Act 1994 (UK)]; (b) misleading or deceptive conduct in contravention of [section 18 of the Australian Consumer Law / section 43(a) of the Lanham Act]; and (c) passing off at common law.

Demand

We demand that you immediately:

Step 9: Cease all use of the mark '[INFRINGING MARK]' and any confusingly similar marks in connection with [GOODS/SERVICES];

Step 10: Remove all infringing material from your website, social media accounts, marketing materials, signage, and packaging;

Step 11: Deliver up or destroy all infringing goods and materials in your possession, custody, or control;

Step 12: Provide a written undertaking, in the form enclosed, that you will not resume the infringing conduct; and

Step 13: Provide a full account of [PROFITS EARNED / GOODS SOLD] using the infringing mark.

Time for Compliance

You must comply with demands 1 and 2 within [TIMEFRAME, e.g., “seven (7) days”] of the date of this letter. You must comply with demands 3, 4, and 5 within [TIMEFRAME, e.g., “twenty-one (21) days”] of the date of this letter.

Consequences

If you do not comply within the time specified, our client will commence proceedings seeking: (a) injunctive relief restraining you from continuing the infringing conduct; (b) damages or an account of profits; (c) delivery up and destruction of infringing goods; (d) costs, including on an indemnity basis; and (e) any further relief the court considers appropriate.

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Our client reserves all rights.

Yours faithfully,

[SOLICITOR NAME] [FIRM NAME]

Template 3: Engagement Letter (Retainer)

Purpose

An engagement letter (also called a retainer letter or client agreement) establishes the terms of the solicitor-client relationship. It is a professional obligation in most jurisdictions to provide a written engagement letter at the commencement of the retainer. The letter defines the scope of work, the fee basis, the client's obligations, and the terms on which the retainer may be terminated.

Professional Obligations

Jurisdiction	Requirement	Source
AU	Must provide a costs disclosure before or as soon as practicable after being retained	Legal Profession Uniform Law 2014 s 174
US	Fee arrangement should be communicated to client, preferably in writing; contingency fees must be in writing	ABA Model Rule 1.5
UK	Must provide best possible information about likely costs, including basis of charges	SRA Code of Conduct r 8.7
CA (ON)	Must confirm scope of retainer in writing	Rules of Professional Conduct, r 3.2-1A
NZ	Must provide client with information about the basis on which fees will be charged	Lawyers and Conveyancers Act 2006 s 4; Client Care Rules

Template Text

[FIRM LETTERHEAD]

[DATE]

[CLIENT NAME] [CLIENT ADDRESS]

Dear [CLIENT NAME],

Re: Engagement Letter — [MATTER DESCRIPTION] Our Ref: [FILE REFERENCE]

Thank you for instructing [FIRM NAME] in relation to [MATTER DESCRIPTION]. We are pleased to confirm our engagement on the following terms.

1. Scope of Work

We are retained to [DETAILED DESCRIPTION OF SCOPE, e.g., "provide legal advice and representation in relation to your claim against [OPPOSING PARTY] arising from

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[DESCRIPTION OF DISPUTE]. Our retainer includes: reviewing the relevant documents, advising on your rights and options, drafting and filing a Statement of Claim, conducting discovery, preparing for and attending mediation, and (if necessary) representing you at trial.”]

Our retainer does not include [EXCLUSIONS, e.g., “any appeal from the trial court’s decision, any counterclaim brought by the opposing party, or any related taxation advice. If these matters arise, we will discuss them with you separately.”]

2. Supervising Solicitor

The solicitor with primary responsibility for your matter is [SOLICITOR NAME], [TITLE]. Other solicitors, clerks, and paralegals may also work on your matter under [SOLICITOR NAME]‘s supervision.

3. Fees

Our fees are calculated on the following basis:

[OPTION A — TIME-BASED:] Fees are calculated on a time-spent basis at the following hourly rates (exclusive of GST):

Step 14: Partner: $[RATE] per hour

Step 15: Senior Associate: $[RATE] per hour

Step 16: Solicitor: $[RATE] per hour

Step 17: Paralegal: $[RATE] per hour

Time is recorded in six-minute units. These rates are reviewed annually and may be adjusted on reasonable notice.

[OPTION B — FIXED FEE:] A fixed fee of $[AMOUNT] (exclusive of GST) for the scope of work described in clause 1. The fixed fee does not include [EXCLUSIONS].

[OPTION C — CONTINGENCY / CONDITIONAL FEE:] [AU: A conditional costs agreement pursuant to [section 181 of the Legal Profession Uniform Law 2014]. If the matter is successful, our fees will be [PERCENTAGE]% of the amount recovered, or our time-based fees plus an uplift of [PERCENTAGE]% (not exceeding 25%), whichever is [GREATER/LESSER]. If the matter is unsuccessful, [NO FEE IS PAYABLE / the following fees are payable: [SPECIFY]].]

4. Disbursements

In addition to our fees, you are responsible for disbursements incurred in the conduct of the matter, including court filing fees, barrister’s fees, expert fees, search fees, travel expenses, and photocopying. We will seek your approval before incurring any individual disbursement exceeding $[THRESHOLD].

5. Billing and Payment

We will render invoices [FREQUENCY, e.g., “monthly”]. Payment is due within [PAYMENT TERMS, e.g., “fourteen (14) days”] of the date of the invoice. We reserve the right to cease work if an invoice remains unpaid for more than [PERIOD].

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6. Estimates

Based on the information currently available, we estimate that the total costs of this matter will be in the range of $[LOWER ESTIMATE] to $[UPPER ESTIMATE] (exclusive of GST and disbursements). This estimate is based on the assumptions set out in [SCHEDULE / BELOW] and may change if [CIRCUMSTANCES THAT MAY AFFECT ESTIMATE]. We will inform you promptly if it appears the estimate will be exceeded.

7. Your Obligations

You must: (a) provide us with complete and accurate information and instructions promptly; (b) provide us with all relevant documents; (c) inform us of any changes in your contact details or circumstances relevant to the matter; (d) pay our invoices within the time specified; and (e) make yourself available for conferences, mediations, and court appearances as required.

8. Confidentiality

All communications between us are confidential and subject to legal professional privilege. We will not disclose your confidential information to any third party without your consent, except as required by law or as necessary for the conduct of the matter.

9. Conflicts of Interest

We have conducted a conflict check and are not aware of any conflict of interest that would prevent us from acting for you. If a conflict arises during the retainer, we will notify you immediately and take appropriate steps in accordance with our professional obligations.

10. Termination

You may terminate this retainer at any time by written notice to us. We may terminate this retainer on reasonable notice if [GROUNDS, e.g., “you fail to provide instructions or pay invoices, a conflict of interest arises that cannot be resolved, or we are required to withdraw in accordance with our professional obligations”].

Upon termination, you remain liable for fees and disbursements incurred up to the date of termination. We will provide your file to you or your new solicitor upon payment of all outstanding fees.

11. Complaints

If you are dissatisfied with our services, please raise the matter with [COMPLAINTS CONTACT]. If you are not satisfied with our response, you may contact [REGULATORY BODY, e.g., “the Legal Services Commissioner” / “the Solicitors Regulation Authority” / “your state bar association”].

Acceptance

Please sign and return the enclosed copy of this letter to confirm your instructions. If you have any questions, please do not hesitate to contact me.

Yours faithfully,

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[SOLICITOR NAME] [FIRM NAME]

ACKNOWLEDGMENT

I, [CLIENT NAME], confirm that I have read and understood this Engagement Letter and the attached Costs Disclosure, and I instruct [FIRM NAME] to act for me on the terms set out above.

Signature: _____ Name: [CLIENT NAME] Date: [DATE]

Template 4: Costs Agreement / Disclosure

See Section 3 of the Engagement Letter above. The costs disclosure is typically provided as an attachment to the engagement letter or as a separate document that satisfies the requirements of the Legal Profession Uniform Law 2014 s 174 (AU), ABA Model Rule 1.5 (US), or SRA Code r 8.7 (UK).

The key mandatory disclosure items (AU) are:

- Step 18: The basis on which fees are calculated (time, fixed, conditional, or other)
- Step 19: An estimate of total legal costs, or if an estimate cannot be given, the range of costs and the major variables
- Step 20: The client's right to negotiate a costs agreement
- Step 21: The client's right to receive an itemized bill
- Step 22: The client's right to have costs assessed by a costs assessor
- Step 23: The availability of costs dispute mechanisms
- Step 24: Any uplift or premium that may be charged
- Step 25: The approximate cost of any barrister or agent to be engaged

Template 5: Without Prejudice Settlement Offer

Purpose

A without prejudice settlement offer is a communication made in a genuine attempt to resolve a dispute. The "without prejudice" privilege protects such communications from being admitted in evidence if the negotiations fail and the matter proceeds to trial. The privilege is recognized at common law and by statute in all covered jurisdictions.

Legal Effect

The without prejudice privilege applies when: (a) there is a genuine dispute between the parties; (b) the communication is made in a genuine attempt to resolve that dispute; and (c) the communication is expressly or impliedly made without prejudice. See *Field v Commissioner for Railways for NSW* (1957) 99 CLR 285.

A Calderbank offer (named after *Calderbank v Calderbank* [1975] 3 All ER 333) is a without prejudice offer that is "without prejudice save as to costs" — meaning it cannot be admitted on

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liability but can be admitted on the question of costs if the offeree fails to achieve a better result at trial than the offer.

Template Text

[FIRM LETTERHEAD]

[DATE]

WITHOUT PREJUDICE [SAVE AS TO COSTS]

[OPPOSING SOLICITOR NAME] [OPPOSING FIRM NAME] [OPPOSING FIRM ADDRESS]

Dear [NAME],

Re: [MATTER DESCRIPTION] Our Ref: [FILE REFERENCE] Your Ref: [OPPOSING REFERENCE]

We are instructed by our client, [CLIENT NAME], to make the following offer of settlement on a without prejudice basis [save as to costs].

Offer

Our client offers to resolve this matter on the following terms:

Step 26: [DEFENDANT/RESPONDENT] pays [PLAINTIFF/APPLICANT] the sum of $[AMOUNT] in full and final settlement of all claims between the parties in these proceedings.

Step 27: [EACH PARTY BEARS ITS OWN COSTS / THE [PARTY] PAYS THE [OTHER PARTY]'S COSTS ON A [PARTY/PARTY / STANDARD] BASIS, AS AGREED OR ASSESSED.]

Step 28: The parties execute a deed of release in terms to be agreed, recording that the settlement is in full and final satisfaction of all claims, demands, and causes of action between the parties arising from the subject matter of these proceedings.

Step 29: [ADDITIONAL TERMS, e.g., "The terms of the settlement remain confidential."]

Basis of Offer

This offer is made having regard to [BRIEF STATEMENT OF THE MATTERS CONSIDERED, e.g., "the strength of our client's claim, the costs of further litigation, and the commercial desirability of resolving this matter promptly"]. It represents a genuine and reasonable attempt to resolve these proceedings.

Time for Acceptance

This offer remains open for acceptance for [TIMEFRAME, e.g., "twenty-eight (28) days"] from the date of this letter. After that date, the offer lapses unless extended in writing.

Costs Consequences

This offer is made on a Calderbank basis. If [OPPOSING PARTY] does not accept this offer and subsequently fails to achieve a more favorable result at trial, our client will rely on this letter in support of an application for indemnity costs from the date of this offer.

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Yours faithfully,

[SOLICITOR NAME] [FIRM NAME]

Template 6: Notice of Termination of Retainer

Purpose

A notice of termination of retainer formally ends the solicitor-client relationship. It may be issued by the client (who has an absolute right to terminate at any time) or by the solicitor (who may only terminate on proper grounds and with reasonable notice to avoid prejudicing the client). Professional obligations require the solicitor to give reasonable notice, return the client's documents, and not terminate at a time that would materially prejudice the client.

Template Text

[FIRM LETTERHEAD]

[DATE]

[CLIENT NAME] [CLIENT ADDRESS]

Dear [CLIENT NAME],

Re: Termination of Retainer — [MATTER DESCRIPTION] Our Ref: [FILE REFERENCE]

We write to advise that [FIRM NAME] is terminating our retainer to act for you in the above matter, effective [DATE — must provide reasonable notice].

Reason for Termination

[SELECT APPROPRIATE REASON — note that in some circumstances the solicitor cannot disclose the specific reason:]

(a) [We have not received instructions from you despite our requests dated [DATES].] (b) [Our invoices dated [DATES] totaling $[AMOUNT] remain outstanding despite our reminders dated [DATES].] (c) [A conflict of interest has arisen that prevents us from continuing to act.] (d) [We are no longer able to act in this matter for professional reasons that we are not at liberty to disclose. / There has been a breakdown in the solicitor-client relationship.]

Your File

Upon termination, you are entitled to your file. We will release your file to you or your new solicitor upon: (a) your written direction specifying where the file should be sent; and (b) [payment of our outstanding fees and disbursements / subject to our right to exercise a lien over the file for unpaid fees, which we will exercise/waive as follows: [SPECIFY]].

[NOTE: The solicitor's lien over the client's file for unpaid fees is recognized at common law but is subject to the court's discretion. In some jurisdictions and circumstances, the court may order

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release of the file notwithstanding the lien, particularly where the client's interests would be prejudiced.]

Upcoming Deadlines

We draw your attention to the following matters that require action:

Step 30: [DEADLINE 1, e.g., "Your defense is due to be filed by [DATE]."]

Step 31: [DEADLINE 2, e.g., "A mediation is scheduled for [DATE]."]

Step 32: [DEADLINE 3, e.g., "The limitation period for your claim expires on [DATE]."]

It is essential that you engage new solicitors promptly to protect your interests. If you do not engage new solicitors and take the necessary steps, your rights may be prejudiced.

Outstanding Fees

Our final invoice in the amount of $[AMOUNT] is enclosed. Payment is due within [PAYMENT TERMS] of the date of this letter.

We wish you well in the continued conduct of this matter.

Yours faithfully,

[SOLICITOR NAME] [FIRM NAME]

Common Pitfalls Across All Correspondence Templates

Step 33: **Sending privileged correspondence to the wrong recipient.** Without prejudice correspondence should only be sent to the opposing party's legal representatives, not to the court (unless a Calderbank costs argument is being made after judgment).

Step 34: **Failing to mark correspondence correctly.** If a letter is intended to be without prejudice, it should be marked as such. While the privilege depends on substance not form, clear marking avoids disputes about whether the privilege applies.

Step 35: **Threatening proceedings without authority.** A solicitor must have instructions from the client before threatening legal proceedings. Threatening proceedings without instructions may breach conduct rules.

Step 36: **Terminating retainer at a prejudicial time.** A solicitor who terminates a retainer on the eve of trial or immediately before a limitation period expires may face professional conduct complaints and liability for the client's loss.

Step 37: **Failing to include mandatory costs disclosure.** In Australia, failure to provide costs disclosure in accordance with the Legal Profession Uniform Law may result in the solicitor being unable to recover fees and may trigger professional conduct consequences.

Cross-References

Step 38: Legal writing: 02-legal-writing/ — drafting principles for professional correspondence

Step 39: Ethics: 05-legal-ethics-and-professional-conduct/ — duties to client, costs disclosure, termination of retainer

Step 40: Client management: 06-client-management/ — engagement process, file management, billing

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Step 41: Civil procedure: 04-court-procedure-and-advocacy/01-civil-procedure-overview.md — pre-action protocols

Step 42: Costs: 04-court-procedure-and-advocacy/01-civil-procedure-overview.md — costs assessment and Calderbank offers

Step 43: Contract templates: 01-contract-templates.md — agreements underlying demand and dispute correspondence

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Reference Tables

Consolidated reference tables extracted from the documentation.

Contract Templates

Clause	Purpose	Risk if Omitted
Definition of Confidential Information	Defines scope of protection	Disputes about what is covered
Exclusions (1.1(f)-(i))	Prevents overreach; ensures enforceability	May be found unconscionable or unenforceable
Compelled Disclosure (3)	Protects party from criminal liability for obeying court orders	Party faces impossible choice between breach of agreement and contempt of court
Return/Destruction (4)	Limits ongoing exposure after relationship ends	Information remains accessible indefinitely
Remedies (6)	Establishes entitlement to injunctive relief	Must prove entitlement to injunction from scratch
Survival (7.2)	Extends protection beyond agreement term	Protection ceases when agreement terminates

Contract Templates

Issue	AU	US	UK	CA	NZ
Consideration required	No (if deed)	Yes (mutual disclosure usually sufficient)	No (if deed)	Yes	No (if deed)
Non-compete in NDA	Enforceable if reasonable	Varies by state; void in CA (Bus & Prof Code s 16600)	Enforceable if reasonable	Enforceable if reasonable	Enforceable if reasonable
Injunctive relief	Equitable discretion	Available; some states require bond	Equitable discretion	Equitable discretion	Equitable discretion
Electronic execution	Valid under ETA 1999	Valid under E-SIGN Act / UETA	Valid under ECA 2000	Valid under provincial e-commerce acts	Valid under ETA 2002

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Contract Templates

Issue	AU	US	UK	CA	NZ
Unfair contract terms	ACL applies to standard form small business contracts	UCC Art 2 (goods); common law (services)	CRA 2015 (consumer); UCTA 1977 (business)	Provincial consumer protection acts	FTA 1986 unfair contract terms
Contractor vs employee	Multi-factor test (*Personnel Contracting*)	IRS 20-factor test; ABC test (some states)	IR35 off-payroll rules	Common law test; provincial legislation	Employment Relations Act 2000 tests
IP assignment	Must be in writing (Copyright Act 1968 s 196)	Must be in writing (17 USC s 204)	Must be in writing (CDPA 1988 s 90)	Must be in writing (Copyright Act s 13)	Must be in writing (Copyright Act 1994 s 114)
GST/VAT/Tax	10% GST	No federal sales tax; state varies	20% VAT	5% GST + provincial	15% GST

Contract Templates

Requirement	AU (NSW)	US (CA)	UK	CA (ON)	NZ
Maximum bond	4 weeks rent	2 months (unfurnished); 3 months (furnished)	5 weeks rent (Tenant Fees Act 2019)	Last month's rent	4 weeks rent
Bond lodgment	Mandatory with state authority	Varies by state	Mandatory deposit scheme	Mandatory interest payment	Mandatory with Tenancy Services
Rent increase notice	60 days	30/90 days depending on increase	1 month (s 13 HA 1988)	90 days	60 days
Break lease penalties	Regulated by statute	Early termination fee if in lease	Fixed term usually binding	Varies	Regulated by statute
Implied warranty of habitability	Statutory (RTA 2010 s 52)	Common law + Civil Code s 1941	Landlord and Tenant Act 1985 s 11	RTA 2006 s 20	Residential Tenancies Act 1986 s 45

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Litigation Templates

Jurisdiction	Form	Rules Reference
NSW (Supreme/District)	Form 6 UCPR	Uniform Civil Procedure Rules 2005 (NSW) r 6.2
NSW (Local Court)	Form 2 LCR	Local Court Rules 2009
Federal Court (AU)	Form 17	Federal Court Rules 2011 r 8.21
Victoria (Supreme)	Form 5A	Supreme Court (General Civil Procedure) Rules 2015 r 5.02
US (Federal)	No prescribed form; must comply with FRCP	Federal Rules of Civil Procedure, Rule 8
England and Wales	Form N1 (claim form) + Particulars of Claim	Civil Procedure Rules 1998, Part 7
Canada (Ontario)	Form 14A	Rules of Civil Procedure, Rule 14.03
New Zealand	Form G9 (High Court)	High Court Rules 2016, r 5.26

Litigation Templates

Cause of Action	AU (NSW)	US (Federal/General)	UK	CA (ON)	NZ
Contract	6 years (Limitation Act 1969 s 14)	Varies by state (typically 4-6 years)	6 years (Limitation Act 1980 s 5)	2 years (Limitations Act 2002 s 4)	6 years (Limitation Act 2010 s 11)
Tort (general)	6 years (s 14)	Varies (typically 2-3 years)	6 years (s 2)	2 years (s 4)	6 years (s 11)
Personal injury	3 years from discoverability (s 50C)	Varies (typically 2-3 years)	3 years (s 11)	2 years (s 4)	3 years from discoverability (ACC regime applies)
Defamation	1 year, extendable to 3 (s 14B)	Varies (typically 1-2 years)	1 year (s 4A)	2 years (s 4)	2 years (Defamation Act 1992 s 55)

Litigation Templates

Element	Requirement	Consequence of Omission
Material facts	Must plead all facts essential to the cause of action	Claim may be struck out as disclosing no reasonable cause of action
Particulars	Must provide sufficient detail for the defendant to understand the case	Court may order further and better particulars; may strike out
Relief sought	Must specify the relief claimed	Court cannot grant relief not claimed
Verification	Some jurisdictions require verification by the plaintiff	Document may be rejected for filing
Annexures	Must identify and annex key documents relied upon	May need to amend to include later

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Litigation Templates

Jurisdiction	Method	Time Limit After Filing
NSW	Personal or substituted service (UCPR r 10.20)	Valid for 6 months (UCPR r 6.2(4))
Federal Court (AU)	Personal, substituted, or agreed method (FCR r 10.01)	Valid for 12 months
US (Federal)	Per FRCP Rule 4 (personal, agent, mail with waiver)	90 days (FRCP r 4(m))
England and Wales	Per CPR r 6.3 (personal, first class post, DX, fax, email)	4 months (domestic); 6 months (overseas)
Ontario	Personal or alternative (Rule 16)	6 months
New Zealand	Personal or substituted (HCR r 6.1)	12 months

Litigation Templates

Jurisdiction	Time to File Defense
NSW	28 days after service (UCPR r 14.3)
Federal Court (AU)	28 days after service (FCR r 16.32)
US (Federal)	21 days after service; 60 days if service waived (FRCP r 12(a))
England and Wales	14 days after service of particulars; 28 days with acknowledgment of service (CPR r 15.4)
Ontario	20 days (local); 40 days (outside province); 60 days (outside country) (Rule 18.01)
New Zealand	25 working days (HCR r 5.53)

Litigation Templates

Requirement	Detail
Specificity	Must describe documents with reasonable specificity; cannot be a “fishing expedition”
Relevance	Documents sought must be relevant to an issue in the proceedings
Legitimate forensic purpose	Must serve a legitimate forensic purpose, not be oppressive or used for discovery against a non-party
Conduct money	AU: Must be served with conduct money (reasonable cost of compliance). US: FRCP r 45(d)(2) — reasonable costs. UK: Reasonable costs must be tendered.
Leave requirement	Some courts require leave to issue a subpoena to a non-party
Objection	The addressee may object on grounds of privilege, oppression, or lack of legitimate forensic purpose

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Source Bibliography — Research Papers

All primary sources, papers, books, and references cited in or supporting this briefing, grouped by type.

Case Law

Unknown Author (n.d.). *Hadley v Baxendale*.

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Law Variant Sections

Jurisdiction Reference

Jurisdictions Covered

Jurisdiction	Coverage	Notes
Australia	Covered	
United States	Covered	
United Kingdom	Covered	
Canada	Covered	
New Zealand	Covered	

Legislation Index

Legislation Index

Legislation	Year	Jurisdiction
Australian Consumer Law or the Consumer Rights Act 2015	2015	
Employment Relations Act 2000	2000	
Copyright Act 1968	1968	
Copyright Act 1994	1994	
Fair Work Act 2009	2009	
Employment Rights Act 1996	1996	
Housing Act 1988	1988	
Residential Tenancies Act 2010	2010	
Housing Act 2004	2004	
Tenant Fees Act 2019	2019	
Landlord and Tenant Act 1985	1985	
Residential Tenancies Act 1986	1986	
The Tenant Fees Act 2019	2019	
Limitation Act 1969	1969	
Limitation Act 1980	1980	

Case Reference

Case Law Reference

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Case	Citation	Relevance
Dynamex Operations West v Superior Court	—	
Banks v Goodfellow	—	
Field v Commissioner for Railways for	—	
Calderbank v Calderbank	—	

Regulatory Bodies

Regulatory Bodies Referenced

Body	Status	Notes
OAIC	Mentioned	
ICO	Mentioned	
ASIC	Mentioned	
EPA	Mentioned	

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